

PART 1 - PARTY FORMATION

CHAPTER 1 – PREAMBLE

Shikana Frontliners for Unity Party (SFUP) are Kenyans who believe in UNITY of PURPOSE and a society built on the foundations of **Truth, Rule of Law, Social Justice and Sustainable Prosperity**. The Party and its members are ready, capable and willing to serve all of humanity without discrimination, being conscious of our obligation to the Divine. We believe that societies that progress and uplift their people, do so because they have good leaders and systems, not just great ideas. It is also nearly impossible to produce good, implementable ideas when there is no leadership that can convert those ideas into reality. Moreover, poor leadership can also delay, at great cost, the achievement of our shared dream of becoming a united, equal and prosperous society.

The socio-economic growth of our people is not an end in itself but a means to provide a decent life for all our citizens. As citizens of this country, we must be responsible to one another, to hold each other accountable in building the society we want to live in. A society that is willing to accept responsibility for the welfare of others and use public resources and institutions to help everyone be on their feet so that we all can contribute meaningfully to the future generations. For us to be able to achieve these goals, we need concerted effort by all communities and our leaders in owning and implementing our programmes and policies.

Our deep-rooted idea of local pride is born from a sense that is distinctly expressed in the power that is vested on the people. No matter what background or community we come from, working hard to deliver on the things that matter to individuals, workers, families and businesses will be our priority. The State has a crucial role to play in achieving balanced regional developments that benefits the entire country from rural to urban.

We the people, and the members of **Shikana Frontliners for Unity Party (SFUP)**:

STRONGLY COMMIT, to understand that our divine purpose is central to creating an integrated model that is based on the principles of a harmonious living and exchange among individuals of differing cultures, origin, traditions, deep histories, and aspirations. This comes with full conviction that the Almighty God, the Creator of all, has equally endowed us with certain unalienable uniqueness and qualities by which we live our lives and practice our faith.

SHALL EXERCISE, the sovereignty of our people and acknowledge the supremacy of the Constitution of the Republic of Kenya, that clearly and succinctly details how we should live together on the basis of self-determination, and an all-inclusive democratic order that guarantee lasting peace, love and unity. It is also about having a political and social-economic contract that values equal access to opportunities regardless of tribe, gender, income or social status.

DEEPLY CONVINCED, that every individual, wherever they may be, can and will pursue the legacy of our heritage and splendour and embrace our continued rich cultural interactions at various levels. This enables our people to deeply connect beyond superficial similarities and acts as a foundation which allows us to nourish and flourish as a one people. Our heritage is worthy of protection and we will defend it wholeheartedly against those who wish to denigrate and undermine it.

RECOGNISES, that our founding fathers founded our nation on the principles of patriotism, selflessness and self-determination. Following in their footsteps, they taught us to have the courage of convictions by clinging to and fighting for the right cause of life, with the deep understanding that sacrificial leadership is not self-

serving. We must stand on our own feet and act in their honor as we continue to fight for our own right and reduce overdependence on regional and international allies.

APPRECIATES, the need to raise our country to high levels of moral dignity by recreating our political institutions, confront social decay and remedy the existing evils in our social and political fabrics. As an advocate for reforming Kenya's political trajectory, we ought to work tirelessly to ensure that we must never again face a situation where our institutions collapse, leaving a long-term damage to our economy and public services. This further arouses the state of absolute consciousness that ensures that the governance of this country requires that we believe in our inner strength and truly attain our ultimate desired goals despite all external challenges and aggression.

RESOLVE, to mobilize together like-minded, thoughtful and committed patriotic Kenyans to form a formidable political party, based on a solid foundation of TRUTH, affirmation of the RULE OF LAW and undisputed UNITY of our people. Our government shall ensure that all our leaders are accountable and that all laws and policies for the party and the country are publicly adoptable, administrable, ad judicable, and enforceable in a fair, transparent and efficient manner.

ASPIRE, to contribute to the goal of a sustainable world where nature and human beings harmoniously co-exist to meet the needs of the present generation and does not compromise the ability of future generations to meet their own needs. This establishes a society that is capable of supporting everyone's needs and ensure we have a long-term goal of sustainability acting as a fundamental social decision we make about the desirability to survive in ecologically sound economic system.

NOW THEREFORE, for the purpose of effective administration and the promotion of these ideals, principles and objectives of our party, **DO HEREBY ENACT AND GIVE TO OURSELVES** this Constitution.

CHAPTER 2 – PRELIMINARY

ARTICLE 1

Name of the Party

1.1 The Party shall be known as “The **Shikana Frontliners for Unity Party (SFUP)**”.

ARTICLE 2

Interpretation

2.1 In this Constitution, unless the context otherwise requires:

“Article” means Article of this Constitution and “clause” or “sub-clause” shall be similarly construed;

“Branch” means an organ of the Party in a Constituency;

“Constituency” means one of the constituencies into which Kenya is divided under Article 89 of the Constitution.

“County” means one of the counties into which Kenya is divided under Article 6(1) of the Constitution and specified in the First Schedule of the Constitution;

“Caucus” means any meeting, at a designated hour and place, of the parliamentary members of the party for the purpose of transacting other business of such party;

“Convention” means a meeting of delegates of the party held for the purpose of designating the candidate or candidates to be endorsed by the party or for the purpose of transacting other business of the party;

“Delegates” are elected or nominated representatives of the party at any level of the structure of the party.

“Disability” has the meaning assigned to it in Article 260 of the Constitution.

“Elective office” refers to both nominated and elected members.

“General election” means the election of one or more members of Parliament and President in accordance with Article 136, 139(1) (b) and 146(2) (b) of the Constitution.

“Marginalized communities” means a community that because of its relatively small population or for any other reason has been unable to fully participate in the integrated social and economic life of Kenya as a whole;

“Office bearer” means any person who is elected by the members of the party to hold a particular office.

“Party” means the Shikana Frontliners for Unity Party (SFUP).

“SFUP” means Shikana Frontliners for Unity Party.

“Supporter” means a voter who supports the nomination of a candidate or is willing to participate in financing the activities of the candidate or party.

“Universal suffrage” means the right to vote for political representatives conferred to almost all adult citizens or residents, regardless of their social status, property, knowledge, religion, race, gender, or other similar qualifications.

“Voter” means a person whose name is included in a current register of voters;

“Ward” means an electoral area for a Member of a County Assembly;

CHAPTER 3 – FOUNDING PROVISIONS

ARTICLE 3

Establishment of the Party

3.1 There is hereby established a Political Party known as the **Shikana Frontliners for Unity Party (SFUP)** (hereinafter referred to as “the Party” or “SFUP” in this Constitution).

Registered Office

3.2 For the purpose of the organization of the party, the Party Headquarters (HQ) shall be at the SHIKANA HOUSE whose location shall be within the Nairobi City County or such other place as the National Executive Council may decide from time-to-time.

3.3 The postal address wherewith all notices and other communications of party may be sent is **P.O BOX 18234 – 00100 Nairobi, Kenya.**

3.4 The official website of the party shall be www.shikana.co.ke

ARTICLE 4

Party Symbol / Flag

4.1 The Party Logo has a face of a Mountain Deer on top of a mountain, and is inscribed inside an Inner Royal Blue Ring and a Golden Brown and Black Outer Bands with the words SFU embossed at the bottom of the mountain *as is illustrated in Schedule II hereto.*

4.2 The party's flag *is illustrated in Schedule III hereto.*

Party Slogan / Emblem

4.3 The Slogan of the Party shall be **“Truth, Always, Conquers”** translated in Latin as **“Veritas, Lux et Lex, Vincit”**.

4.4 The Emblem has the slogan and the words SHIKANA which means HOLDING TOGETHER OR UNITE embossed at the centre of the circle *as is illustrated in Schedule IV hereto.*

Party Salute

4.5 The Party salute is demonstrated by the gesture of placing one's right-hand over one's heart *as is illustrated in Schedule V hereto.*

ARTICLE 5

Allegiance to Constitution

5.1 The Party, its officials and its members shall bear true faith and allegiance to the Constitution of Kenya as the Supreme law.

Supremacy of the Party Constitution

5.2 Subject to the provisions of the Constitution of Kenya, 2010, this Constitution shall govern the affairs of the Party as the supreme and final authority concerning any dispute within the Party.

5.3 If there is a conflict between this Constitution and any Constituent Body or Organ, this Constitution prevails insofar as the affairs of the Party are concerned.

Policy and Direction

5.4 The policy and direction of the Party shall be laid down from time to time in accordance with this Constitution and any Rules made under it.

Code of Conduct

5.5 The National Executive Council shall draw up and maintain a Code of Conduct for all members of the Party in conformity with the principles laid down in this Constitution, which shall set out minimum standards of behavior expected from members towards each other and in representing the Party.

5.6 It shall be submitted to the National Delegates Convention for amendment and/or adoption.

ARTICLE 6

Vision Statement

6.1 To secure upright, safe and progressive communities by creating for them a prosperous socio-economic environment that guarantees equal opportunities for all Kenyans to reach their personal goals and collective aspirations.

Mission Statement

6.2 To continue building a democratic social order that honors the completeness of the law and the absolute consciousness of the Kenyan people while being guided by divinity that shows us the way of life so that everyone can speak the truth in love and act in peace and unity as those who are going to be judged according to their works.

Party Values

6.3 We believe in our party vision, mission and ideology. Pursuant to the provisions of Article 10 of the Constitution of Kenya, we shall achieve a just, morally upright and prosperous society based on but not limited to the following national and traditional values:

- a) Limited Government;
- b) Sovereignty of the People;
- c) Respect to the Rule of Law;
- d) Supremacy of Constitution;
- e) National and Personal Security;
- f) People's Consultative Assembly;
- g) Personal and Collective Responsibility;
- h) Strong Families and Caring Communities;
- i) Equal Citizenship and Opportunities for All;
- j) Informed Individual Choices and Freedoms;
- k) Sustainable Development of our Environment;
- l) Loyalty to our country and its Democratic Principles;
- m) Competitive Enterprise and Rewards for Achievement;

- n) Integrity, Transparency and Accountability of Public Servants;
- o) National, Regional and International Cooperation and Mutual Respect.

Party Ideology

6.4 Our Party is founded on the idea of nationalism which encompasses social and fiscal conservatism. On the one hand we have a fundamental duty of preserving our national and traditional beliefs of a morally stable, cohesive and just society. Further, we have an obligation as a country to ensure that we have an economically empowered people. This can be achieved through focusing on equitably allocating and prudently managing our national and natural resources, for the collective benefit and protection of the interest of our Cultures, Communities, Constituencies, Counties and the Country (5Cs).

CHAPTER 4 – PARTY MEMBERSHIP RULES

ARTICLE 7

Categories of Membership

- 7.1 The National Executive Council with the approval of the National Delegates Convention shall have power from time to time to create or modify or abolish any existing category of membership for the advancement of the Party's interest as the circumstances may permit.
- 7.2 The Party shall have the following categories of members, with each category having respective rights and obligations, as prescribed:
- a) Individual membership (Ordinary or Life membership)
 - b) Family Membership
 - c) Affiliate or Group Membership
 - d) Supporters
- 7.3 A member may convert his/her membership from one category of membership to the other by making an application to the Branch or National Executive Council and paying the prescribed fees for that category *as is illustrated in Schedule VI hereto*.

ARTICLE 8

Procedure to Become a member

- 8.1 Membership in the Party must satisfy the following minimum requirements:
- a) Membership shall be open to all Kenyan citizens who must attain the minimum age specified by law (18 years of age or over) except otherwise determined by the constitution of Kenya and must be in possession of a valid National Identification card or Passport;
 - b) All members in good standing with the party shall enjoy equal rights and privileges of membership;
 - c) A member must qualify to be a voter under the Elections Act, 2011 or Political Parties Act, 2007 (or any Act passed in amendment of or in substitution for the same). No person otherwise disqualified under these Acts or any other shall be eligible for membership as a founding member within the meaning of that Act;
 - d) Each member must not be a member of another registered Political Party within the meaning of the Political Parties Act, 2007 and may not contest using any other party, or group or organization which is declared by the National Executive Council to be incompatible with the Party;
 - e) A member must be prepared to profess and abide by this Constitution and other Rules made thereunder and must actively endorse and accept to be subjected to the ideology, principles, objects, policies, programmes, directives and discipline of the Party;
 - f) A person who intends to be a member of the Party shall make a written or verbal application to a Branch Executive Committee (hereafter referred to as BEC) or the nearest Party office countrywide or any other interim structure appointed by the National Executive Council to receive the applications.
 - g) Members can also apply for membership through such digital and/or electronic means or may become a member of the party at any place or time when approached or solicited so to do by a Party member during a membership recruitment drive;
 - h) All applications for membership shall be received, accepted and processed by the Branch Executive Committee (BEC) or by the appropriate body or any other provisional or interim leadership which

- shall have the power to accept or refuse any application for membership provided that such acceptance or refusal shall be subject to review by the National Executive Council of the Party;
- i) Any Kenyan who applies for membership either electronically or manually, shall receive acknowledgment of membership either electronically or digitally and such acknowledgment will be given to individual registered members of the Party;
 - j) Application for affiliate or group membership shall be made in writing and be considered by the National Executive Council who shall have the power to accept or refuse any application for membership;
 - k) A person who is eligible for membership of the Party shall become a member of the Party when:
 - i. The person pays in the amount specified for registration;
 - ii. Pays the subscription or any other fees to the Party or otherwise loses all rights of membership; and
 - iii. The person is approved for membership by the Branch in which that person resides and/or National Executive Council of the Party;
 - l) Where an application for membership is accepted, the name of the applicant and other relevant particulars shall be entered in the membership register, and the member shall, in a language he or she understands, make a solemn declaration, sign and subscribe to the Party's Code of Conduct, Standing Orders and Policy and Direction and a Pledge of Commitment to the Party;
 - m) The registered member shall thereafter be issued with a Certificate of Membership together with a membership card which shall be duly serialized, dated and signed subject to payment of the prescribed membership fee;
 - n) A member shall, upon request, be issued with copies of official Party documents including this Constitution, members guide, elections and nomination rules and Party manifesto, Code of Conduct and any other relevant information about the Party;
 - o) At any time before an application is accepted or in exceptional circumstances when the membership has been granted, the application may be rejected or membership cancelled on the ground of misrepresentation, forgery, misinformation, or such related grounds;
 - p) A person whose application for membership has been denied or cancelled shall be given the reasons for the decision and shall have a right to seek a review of the decision and an appeal to the party's National Executive Council;
 - q) Objections to application for membership may be made by any registered member of the Party to the Ward, Constituency, County, or Secretary General within twenty-one days (21) of notification of the application for membership; provided that the final decision to reject an application for membership shall be made by the National Executive Committee;
 - r) If the application for membership is rejected, the reason for rejection shall be communicated to the applicant and the applicant may, within fourteen (14) days from the date of receipt of the reasons for rejection of membership, make an application to the Party organ that made the decision for a review;
 - s) Despite the right to make application for review of the decision to reject an application for membership by the BEC or any other party organ, a person may within twenty-eight (28) days of receipt of the reasons for rejection of membership appeal the decision to the National Executive Council.
 - t) An application for review or appeal shall be heard within a reasonable time by the National Executive Council or any interim structure appointed by the council to hear reviews and appeals. The decisions on appeal on the question of membership shall be final.

- u) The annual subscription shall be due on 1 January in each financial year. Members who join after 30 June shall pay half the annual subscription in the initial year.
- v) Any member who fails to renew his membership by payment of the annual subscription fees by 30th June each year or within 6 months after due date, shall be treated as unfinancial and forfeit rights and obligations of membership, cease to enjoy the rights and privileges of membership and shall not be permitted to take part in the affairs of the Party until such arrears are paid; if a member is in default of payment of fees due to them, for upward of 12 months shall cease to be a member;
- w) The members elected on the Party ticket and officials of the Party shall pay a monthly subscription fee as set out in the party rules. The NEC may review the subscription fee from time to time and shall be payable either in advance or as prescribed in the party rules when they fall due.
- x) A member who fails to pay subscription fees for three (3) consecutive months without reasonable cause and the subscription fee remains outstanding after the member has been issued with a written notice to settle the outstanding fees within three (3) consecutive Months, shall not be regarded as a member in good standing. Outstanding membership fees shall be deemed as a debt to the Party and shall be recoverable against the member in accordance with the law;
- y) Any member of the Party who contests in any Ward, Parliamentary, Senatorial, Gubernatorial or Presidential elections or acts as an agent or campaigner of a person duly endorsed by the National Executive Council to contest for such elective position shall be subjected to the parties' code of conduct and disciplinary mechanisms;
- z) The National Executive Council may, acting on its own motion or on the recommendation of the Supreme Advisory Council, grant honorary or associate membership to selected eminent persons, who though not members of the party have demonstrated unwavering commitment, interest and upheld the Party principles.

PART 2 - PARTY LEADERSHIP

CHAPTER 5 – NATIONAL OFFICIALS

ARTICLE 9

National Office Bearers

9.1 There shall be at all levels of the Party, Office Bearers elected or appointed in accordance with this constitution. The affairs of the Party shall be managed as provided for by the organs in this Constitution and the party rules.

9.2 The Party shall be managed at the National level by the following officials:

- 1) President
- 2) Deputy President
- 3) Party Leader
- 4) Deputy Party leader
- 5) National Chairperson
- 6) Deputy National Chairperson
- 7) Secretary General
- 8) Deputy Secretary General
- 9) National Treasurer
- 10) Deputy National Treasurer
- 11) Secretary, National Oversight and Audit
- 12) Deputy Secretary, National Oversight and Audit
- 13) Adviser, National Justice, Legal and Constitutional Affairs
- 14) Deputy Adviser, National Justice, Legal and Constitutional Affairs
- 15) Secretary, National Organizing and Membership Affairs
- 16) Deputy Secretary, National Organizing and Membership Affairs
- 17) Secretary, National Publicity and Media Relations
- 18) Deputy Secretary, National Publicity and Media Relations
- 19) Secretary, Party Elected Leaders Group (County, National Assembly and Senate)
- 20) Leader, National Youth Chapter Affairs
- 21) Deputy Leader, National Youth Chapter Affairs
- 22) Leader, National Women Chapter Affairs
- 23) Leader Deputy, National Women Chapter Affairs
- 24) Leader, National Chapter for Special Interests Affairs
- 25) Leader Deputy, National Chapter for Special Interests Affairs
- 26) Director, Campaigns and Mobilization Strategy
- 27) Deputy Director of Campaigns and Mobilization Strategy
- 28) Director, Nominations and Candidate Elections
- 29) Deputy Director of Nominations and Candidate Elections
- 30) National Chairperson, House of Elders
- 31) Deputy National Chairperson, House of Elders

- 32) National Executive Director (Ex-Officio)
- 33) Secretary, Tourism and Wildlife Services
- 34) Secretary, Defense and Homeland Security
- 35) Secretary, Sports, Arts and Cultural Heritage
- 36) Secretary, Agriculture, Livestock and Fisheries
- 37) Secretary, Education, Science and Technology
- 38) Secretary, Public Policy and Economic Planning
- 39) Secretary, Corporate Strategy & Political Affairs
- 40) Secretary, Professional Regulatory Bodies Affairs
- 41) Secretary, International Relations and EAC Affairs
- 42) Secretary, Energy, Minerals and Natural Resources
- 43) Secretary, Investments, Trade and Industrialization
- 44) Secretary, Public Finance and Resource Mobilization
- 45) Secretary, Environment, Forestry and Water Resources
- 46) Secretary, Social Welfare and Differentially Able Affairs
- 47) Secretary, Public Service, and Human Resource Development
- 48) Secretary, Transport and Physical Infrastructure Development
- 49) Secretary, Special programmes and Disaster Management Affairs
- 50) Secretary, County Government Coordination and Internal Cooperation

Eligibility Criteria for Party Official or Elective Position

9.3 An aspiring candidate or nominee seeking nomination and elections to fill in any positions in the Party Organs or in respect of the National Officials, Presidential, Gubernatorial and his/her Deputy, Civic/ County Assembly and Parliamentary/National Assembly, Senator, Women Representative Elections, shall fulfill the following **general provisions** in alignment with accountability, leadership and integrity for the respective elective positions:

- a) Fear God Almighty;
- b) Be a registered voter in that electoral area;
- c) Must have been a resident in Kenya for not less than the past 15 years;
- d) Be able to read and write and is proficient in both English and Kiswahili languages;
- e) Has evidence of registration as a member of the party (Membership Card and Certificate);
- f) If a youth, must have attained the age of eighteen years but not attained the age of thirty-five years;
- g) Up-to-date with Payment of the required annual subscription fees and the payment of nomination fees;
- h) Loyal to the Constitution of the Republic of Kenya and Committed to the ideals and core values of the party;
- i) Be registered as a voter or a member in the Ward/Constituency and County for which he/she seeks election;
- j) Has a Copy of Voter 's card, National Identity Card or Valid Passport (the document used by the nominee to register as a voter) or affidavit;

- k) Pursuant to Article 78. (1) of the Constitution of Kenya, be a Kenyan citizen by natural birth in order to be eligible to stand for election or appointment to any State office;
- l) Must not hold dual citizenship unless citizenship of the other country has been obtained by operation of law without capacity to opt out;
- m) Not have been convicted of crimes against humanity or a criminal offence involving moral turpitude or deprived of civil rights by court or sentenced to imprisonment based on a court decision;
- n) Has never betrayed the people or the state, or committed a disgraceful act or a crime of corruption or declared bankrupt and other serious crimes and can report his wealth and obtained clearance from EACC (the statutory declaration under the leadership and integrity Act);
- o) Has a taxpayer identification number and has carried out the obligation to pay taxes for the last 5 (five) years as evidenced by an annual income tax return for individual taxpayers;
- p) If a party list PWD, a certificate and form signed by a medical doctor or certification from the National Council for Persons with Disabilities;
- q) Has a vision and mission for implementing socio-economic programs for the people and the government of the Republic of Kenya;
- r) A signed declaration that the nominee has adhered to leadership and integrity requirements in chapter six of the Kenyan Constitution; must be members of the Party in good standing, has integrity, demonstrable competence and proven leadership abilities, experience in management of public affairs among others;
- s) Must have been a financial member of the Party for 12 months immediately prior to the date of nomination and be eligible to stand for election into any party or public office or considered for political appointment unless the National Executive Council rules to the contrary;
- t) Must have a Duly Filled Application Form and Nomination Form Duly completed in duplicate and signed by a Proposer and Seconder both of whom must be members of the party and registered voters in the electoral area to presented to the Nominations and Elections Board;
- u) Duly execute Declaration of Candidacy Form, Pledge of Commitment to the party's constitution, policies and principles, Code of Conduct Form, Party Right Agreement, and Subscribe to the requirements as determined by Nominations and Election Board;
- v) Evidence of registration as a candidate of the party or receipt of payment of nomination fee (when applicable). The fees to be levied by the party on every aspiring candidate, shall be made known to the party members and may be graduated, waived or different to take into account special interest groups who are aspiring candidates in the party primaries;
- w) Possess a detailed Curriculum Vitae illustrating amongst other qualifications, copies of the candidate's academic qualifications (when applicable) from the relevant institutions or the minimum educational qualifications as provided for under the Election Act 2012, the party constitution, these rules or any other equivalent rule stating the requisite qualification to be eligible to contest;
- x) Demonstrate active participation in Party programs and activities twelve months prior to seeking nomination, PROVIDED that any person unable to meet this requirement may apply in writing to the National Executive Council for exemption from the operation of this requirement and if the National Executive Council deems it in the interest of the party, it may exempt such member.
- y) Meet all minimum requirements under the Section 22 and 23 of the Elections Act, 2011, provisions of Chapter 6,7 and 8 and Regulations set out by the Constitution of Kenya, the Independent Electoral and Boundaries Commission (IEBC) requirements for elective positions, and the Political Parties Act and any other related Regulations from time to time;

- z) Be present during the meeting at which the election is carried out; PROVIDED that the National Executive Committee shall at its discretion waive this requirement where a person seeking election has indicated in writing under his or her hand that he or she is willing to serve in such office if elected.

Disqualification From Participating in Election of National Party Offices

9.4 A person is disqualified from being nominated and elected into any position in Party organs or committees or delegate or from seeking nomination for civic, parliamentary and presidential elections or to a Party List or any other elective position or any delegate may be disqualified by the NEB from taking part in party election on ground of proven misconduct with regard to elections **if the person:**

- a) Is not a citizen of Kenya;
- b) Death or medical reasons;
- c) Is an undischarged bankrupt;
- d) Is incapacitated and of unsound mind;
- e) Has any outstanding dues and penalties owed to the Party;
- f) Failing to accept or abide by this Constitution and any other rules of the Party;
- g) Has intimated his or her resignation either to his or her Branch or to the NEC, or publicly;
- h) A resolution is passed by the National Executive Council to expel or suspend such positions;
- i) Suffers physical impairment, which adversely affects the ability to carry out the duties of the office;
- j) Has not been a citizen of Kenya for at least the 15 years immediately preceding the date of the election;
- k) Is found to have planned, sponsored or participated in any violent activity or promoting political violence and intimidation;
- l) Is found to have provided false statement during nomination and voting or disregarding party policy decisions including the election and nomination rules;
- m) Failing to renew their annual membership by payment of the subscription fees as provided herein or has uncleared arrears with the party in terms of contribution;
- n) Making public utterances and machinations that may arouse racial, ethnic, religious or gender animosities amongst the party members or has been found guilty of misconduct or dishonesty or bribery in the conduct of party affairs;
- o) Pledging or showing allegiance to another political party or declares to have transferred their membership to another political party, or openly supporting other parties competing with SFUP or accept an office or subscribe to or promote activities of another Political Party or Organization whose aims and objectives are in competition with or in conflict with those of SFUP;
- p) A verbal or written resignation to the Secretary of the relevant Branch or National Executive Council, the Secretary General of the Party or Party Leader and as such shall be effective the date of the receipt thereof;
- q) The Branch Executive Committee canceling or suspending the membership of any person whose actions, as a result of investigation and evidence, prejudice the interests of the Party and such cancellation or suspension under sub-clause, is approved by the National Executive Council before it is enforced;
- r) Absenteeism without reasonable cause from at least three (3) consecutive meetings or for such period as shall be prescribed by National Executive Council;

- s) Has at any time within the five years immediately before the date of election held office as a member of the Independent Electoral Boundaries Commission or any Election Commission;
- t) Is engaged in any conduct with respect to elections, which would invite disciplinary proceedings under the Constitution of the Party or has employed violence, threats to violence, or intimidation, including violence against persons with disabilities or sexual and gender-based violence, as a means for political mobilisation against opponents.
- u) Has been found by a court of competent jurisdiction, in accordance with any law, to have misused or abused a State or Public Office or to have contravened any provision of Chapter Six of the Constitution of Kenya;
- v) Has been convicted of any corrupt practices or criminal offence amounting to a felony other than a political offence or is serving a sentence of imprisonment, or is subject to a sentence of imprisonment of at least six months as at the date of nomination as a candidate; PROVIDED that the National Executive Council may for good cause, which shall be specifically documented, exempt any applicant from this requirement;
- w) Fails to meet any qualification criteria specified for an elective position or qualify to hold office pursuant to the provisions of the Constitution of Kenya, 2010, the Elections Act No. 24 of 2011, the Constitution of the party and such other relevant laws and regulation that may be in force;
- x) Holds a State or Public Office pursuant to the Political Parties Act except for the Sitting President, Member of County Assembly, Member of National Assembly, Senator, County Governor or County Woman Representative to the National Assembly;
- y) Must not have been dismissed or removed from public office (including by impeachment) for contravening the provisions of Articles 75, 76, 77 and 78 of the Constitution;
- z) in other cases, as may be set out from time to time by an operation of any prescribed law.

9.5 A person is not disqualified, unless all possibility of appeal or review of a relevant sentence or decision has been exhausted.

Functions of the National Party Officials

- 9.6 NEC may establish any party organ as it may deem appropriate and cause its duties and responsibilities to be published in the party rules. The secretariat is the administrative organ of the party.
- 9.7 All Party officials approved by the NEC shall be allocated specific responsibilities as shall be set out in the Office Bearers' Job Descriptions and aligned to their respective line portfolios. They shall be responsible to their immediate heads and accountable to the National Governing Board and NEC as specified.
- 9.8 All Office Bearers shall not receive remuneration for their work unless otherwise provided for in these rules and others.
- 9.9 The National Executive Committee shall, in its own discretion and subject to the availability of funds, grant such honoraria, out of pocket expenses, to any National Official so as to reasonably facilitate his or her attendance at meetings or to ameliorate his or her just and fair expenses.
- 9.10 All office bearers shall perform their functions within the spirit and provisions of the Constitution of Kenya and this Constitution or other relevant laws and shall ensure that they are further guided by the Party Ideologies, Principles, Objectives and Values.
- 9.11 All Office Bearers at the Regional, County, Constituency, Ward and Community levels shall have similar operational powers and functions as their corresponding National officers, except where this constitution states otherwise.

9.12 Any National Official may attend any meeting(s) organized by the Branch as an ex-officio member.

ARTICLE 10

Guidelines for Meetings

10.1 In respect of party meetings:

- a) the party officers shall meet as circumstances necessitate and decisions made shall be subject to approval by National Executive Council;
- b) the written notice for convening the meeting and the agenda in National, County, Branch, Sub-Branch, and polling stations, shall be sent out to by the respective Secretaries or by the Secretary General at least fourteen (14) days before the meeting;
- c) meetings may be conducted either physically, virtually, or both physically and virtually;
- d) there shall be two classes of meetings:
 - i. Ordinary meetings which shall be convened by a written notice of fourteen (14) days; and
 - ii. Special meetings which shall be convened by a notice of at least seven (7) days or as may be deemed reasonable. Such meetings shall be requisitioned for a specific purpose and no other matter shall be discussed other than as stated in the notice.
- e) an ordinary session of the National Delegates Convention shall be convened by the Party Leader after every two (2) years at a place, date and time as shall be determined by the NEC;
- f) the Party Leader shall convene a special National Delegates Convention upon the decision of the NEC or if requested in writing by fifty percent (50%) of the National Delegates Convention delegates;
- g) all the meetings of the party, unless specifically provided for in this Constitution, shall be presided over by the Chairman or in his or her absence, the Deputy Chairperson at the relevant level and in the absence of both the Chairman and the Deputy Chairman, members present shall elect a member from amongst themselves to preside over the meeting;
- h) any official who fails to attend three (3) consecutive meetings without reasonable cause may be suspended;
- i) resolutions or decisions at the meetings, annual general meetings or National Delegates Convention shall be taken by consensus in default of which there will be voting by show of hands during voting, acclamation or by secret ballot, or by a simple majority where more than one candidate is contesting for one position unless otherwise specifically provided for in this Constitution, and shall be recorded in the minutes;
- j) where only one candidate is nominated for one position at the close of the nominations, that candidate shall be declared the winner. Nomination of candidates shall be by proposal and Secondment;
- k) in the event of an equality of votes at any voting, the person presiding the meeting shall have a deciding vote;
- l) any National Official may attend any meeting(s) organized by the Branch, County or Region as an ex-officio member;
- m) the proceedings of the meetings of the party at all levels shall be in the English language or Swahili or any Kenyan language understood by a majority of members of the party at respective levels;
- n) minutes and resolutions of all meetings including the National and Special Conventions, Regional Convention, and Branch Meetings and their respective Executive Committees, shall be kept by the

respective Secretaries and shall be signed by the Chair of the meeting. The NDC shall be prepared and signed by the Secretary General and the National Chairperson;

- o) the Rules and Regulations governing the conduct of any meetings including rules of procedure for plenary sessions *as indicated in Schedule X*, shall be as approved, from time to time, by the National Executive Council of the party;
- p) the accidental omission to give notice of a meeting to, or the non-receipt of notice of a meeting by any person entitled to receive such notice shall not invalidate the proceedings at that meeting.
- q) the party leader in consultation with NEC may invite distinguished individuals or any other persons who have made special contribution to the Party and demonstrated interest in the work and programs of the Party or who have special skills or experience to attend the NDC or NEC meetings but such invited individuals shall have no right to vote.

10.2 Notwithstanding anything to the contrary hereinafter contained, should a General or a By-Election be called which does not allow for, Candidate Nomination and Selection, then the National Executive Council shall, in consultation with the Chair of the Nominations and Elections Board, be entitled to allow such abridgement of time limits or otherwise necessary to ensure that the processes set out are followed.

Remits for the meetings

10.3

- a) remits passed by Branches, County, Regions, Advisory Groups or at a National Youth, Women, Minority and Disability Committee, shall be submitted to the Strategic Policy Consultation and Rules Committee which is responsible for managing the remit process within the Party by considering the merit of remits based on their consistency with the Vision and Values of the Party and whether they fairly reflect the interests and concerns of Party members from time to time;
- b) remits considered to be appropriate for Convention debate will be recommended to the National Executive Council which shall make the final decision on which remits that will be included in the National Delegates Convention agenda;
- c) remits for the Conventions shall be circulated directly by the Secretary General to Branches not less than four weeks before the date of the Convention.

Quorum for the Meetings

10.4 It is hereby provided that the quorum for the conduct of business of the organs shall be as follows:

- a) one-third of all members of the NEC shall form a quorum;
- b) delegates from 40% of the total number of branches in the county shall form a quorum for all county conferences; and
- c) the quorum for the Ordinary or Special Session meetings or the National Delegates and Special Conventions, the Branch Executive and County Working Committees and the National Executive Council, shall be 50% of all eligible members and voting or as determined by the party organs concerned at their annual meetings.;
- d) the quorum for the Ordinary or Special Session meetings or the National Delegates and Special Conventions, delegates from 50% of the counties representing at least 50% of the total membership of the NDC shall constitute a quorum.
- e) the delegates from 40% of the total number of branches in the county shall form a quorum for all county conventions or as determined by the party organs concerned at their annual meetings;

- f) the quorum for all the meetings of a county, the branch, sub-branch and polling station and meetings of any other organ whose quorum has not been specified at their respective Annual Meetings, shall be 50% of the members entitled to attend such meetings and voting or as determined by the party organs concerned at their annual meetings;
- 10.5 Notwithstanding anything to the contrary of the rules contained herein, any meeting authorized by these rules, may be held by contemporaneous linking together by means of audio, or audio and visual, communication by which all members participating and constituting a quorum, can simultaneously hear each other throughout the meeting and so long as the following conditions are met:
- a) All members entitled to attend such a meeting, are entitled to notice of such a meeting;
 - b) At the commencement of the meeting or when joining a meeting, each member must acknowledge his or her presence for the purpose of the meeting, and to all other members taking part and a member present at the commencement or joining thereafter shall be conclusively presumed to have been present and to have formed part of the quorum at all times from the commencement or joining (as the case may be) during the meeting unless he or she has previously advised the Chairperson of the meeting that he or she is leaving the meeting;
 - c) A Minute of the proceedings at such a meeting shall be sufficient evidence of such proceedings and of the observance of all necessary formalities if certified as a correct Minute by the Chairperson.

Eligibility of Delegates to Meeting

- 10.6 To qualify for seating as a delegate:
- a) each member attending a meeting or is a delegate to a convention must be an individual member in good standing of the Party and shall be entitled to exercise only one vote regardless of the number of positions held in the Party;
 - b) the persons selected by the party to serve as delegates to a convention shall be deemed to have been lawfully selected as such delegates;
 - c) the formulas for the purpose of calculating credential entitlements for conventions, shall be based on membership lists as at the end of the previous membership year, or as at 120 days prior to the convention, whichever is the greater;
 - d) all delegates to a meeting or Convention shall register as delegates which must be received by the National Executive Council at least sixty (60) days before the date and time of each respective Convention. A person whose name does not appear on the registry list shall not be eligible to vote in any, primary or elections;
 - e) at least one copy of the party rules regulating the manner of selecting the delegates shall be shared to all branches;
 - f) as these rules provide, a Branch has the responsibility for choosing its delegates at an Annual General Meeting and thus retains the option of not sending a full delegation to a Convention;
 - g) the person who is a delegate to a National, Special or Regional Convention or Branch meeting and is unable to be personally present, may appoint a substitute to attend and vote in his or her place and must be an individual member in good standing of the Party;
 - h) in the event that a Branch elects a reserve list of delegates then those shall be used for replacements but not necessarily substitutions. The original delegate has the power of appointment substitute subject only to approval of the Chair;

- i) the original delegate must nominate and actually sign the nomination of a substitute in writing, who must consent to taking the position. The Chair of the level concerned must approve the substitution in writing.
- 10.7 Each Branch including Campus Club, Youth, Women, Minority and Disability Groups unless otherwise determined by the National Executive Council shall be entitled to:
- a) three (3) delegates for 30 party members or less;
 - b) two (2) additional delegates for each additional 20 party members or major fraction thereof.
- 10.8 Each affiliate members shall be entitled to:
- a) Two (2) delegates for 30 party members or less; and
 - b) one (1) delegate for each additional 20 party members or major fraction thereof.
- 10.9 The following shall be entitled to delegate credentials:
- a) All former leaders of the Party;
 - b) All members of the Elected Leaders Caucus;
 - c) All members of the National Governing Board and National Executive Council;
 - d) A person who attends as a delegate by right of office held, being Branch Chair, or any other office for which attendance at the meeting is mandated under these rules shall attend in that capacity and not as a member of an elected or nominated delegation of a Branch;
 - e) Chairs and Secretaries of Branch Executive Committee have the right to attend any Executive meeting within their respective Counties or Regions and National whenever it becomes necessary to do so.

Delegates to a Candidate Selection Meeting

- 10.10 It is hereby provided, in respect to the conduct of delegates in a Candidate Selection Meeting at all levels shall be that:
- a) a Candidate Selection Delegates for the Branch shall comprise 50 delegates in number and, in the event that after the conclusion of any adjustments provided for in these rules, the Branch has not provided that number of delegates, the Chair for that Branch shall forthwith appoint such further delegates as are required to achieve this minimum level.
 - b) the validity and actions of the Selection Committee shall not be challenged in the event of the numbers dropping below 50 at the selection meeting; this or any other the relevant rules may not apply in the event that a Constituency has less than 50 current financial members at the date nominations for selection close;
 - c) no member of the party shall be eligible to act as a Candidate Selection Delegate or attend a "Meet the Candidate" (Nominations) meeting in a Branch or County, unless he or she has been a registered member in that Branch and is of good financial standing with the party, for a period of at least 12 months immediately prior to the date of the nominations;
 - d) the Nominations and Elections Board may in consultation with the National Executive Council and for good verifiable reasons, which it shall state and determine, waive the requirement to have been a member in that Branch or of the Party for such 12 months' period;
 - e) no person shall be eligible to act as a Candidate Selection Delegate in a Branch or County, unless that person has attended at least two "Meet the Candidates" Meetings;
 - f) any delegate who is unable to attend any "Meet the Candidate" meeting or is unable to attend the Selections Committee, may appoint in writing signed by the delegate and approved in writing by the

Chair or Secretary of the Branch, a substitute who has the qualifying length of membership and has completed the qualification for attendance to such meeting by attending or having attended at least one "Meet the Candidate" meeting;

- g) the Candidate Selection Delegates for the County shall be constituted such that each branch shall be represented by two current financial members for every complete 30 members of the branch's membership and one extra delegate for a further 20 or more members but must not exceed a maximum of five members from each branch;
- h) if the numbers of the delegate members, disclose that it should be adjusted up or down to a different ratio than specified above, a general meeting of the Branch or County so affected shall be forthwith called to add or to subtract members to the Candidate Selection Delegates;
- i) a delegate member may be discharged from the committee or meetings, if the Nominations and Elections Board considers from an interview and review that the person is unsuitable for continued participation in the committee or delegates or for candidate selection process;
- j) within 10 days of the closing of nominations, the Branch or County Secretary shall, compile and supply to the National Executive Council, a list of delegate numbers for the Candidate Selection Meeting in the following format:
 - (i) Name of Branch or County;
 - (ii) Details of Qualified Membership for Branch or County; and
 - (iii) Total Delegate Number for Branch or County
- k) after the Candidate Selection meetings, the participation in the committee shall be reviewed by the Elections Board and NEC and determined whether it is appropriate for the committee to continue thereafter;
- l) the National Executive Council is not involved in the nomination process and the work of the Candidates Selection Committee shall be kept confidential.

Co-Opted Members to a Meeting

10.11 It is hereby provided that:

- a) any member co-opted to a committee under these rules shall take office at the termination of the meeting at which they are appointed and shall continue in office until the termination of the next annual meeting at which their successors are appointed or at which they are reappointed;
- b) the co-opted members whose term is expiring shall retire from the meeting during the nomination of and taking the vote for the co-option of new members or the reappointment of existing ones;
- c) at the National and County levels, the Party Leader shall have the authority to co-opt members to the Executive or standing or working Committees;
- d) the co-opted members may be chosen from among members of the Party and shall not have the right to vote but will have the eligibility to contest for any office;
- e) the co-opted members who are appointed as office bearers shall have voting rights; and
- f) the Party Leader in consultation with National Executive Council may invite distinguished individuals or any other persons who have made special contribution to the Party and demonstrated interest in the work and programs of the Party or who have special skills or experience to attend the National Delegates Convention or National Executive Council meetings but such invited individuals shall have no right to vote.

PART 3 - PARTY STRUCTURES

CHAPTER 6 – PARTY GOVERNANCE

ARTICLE 11

Party Organizational Structure

11.1 The party shall be managed and run through such party organs and a secretariat as the National Executive Council, with the approval of the National Delegates Convention, may establish from time to time. Therefore, it is hereby provided that:

- a) For the purpose of administration, governance, mobilization and elections, the party shall have a five-tier organizational structure comprising the following levels:
 - i. Sub-Branch Level (Polling Station Team and Ward);
 - ii. Branch Level (Local Traditional Council and Constituency);
 - iii. County Level (47 Counties per Schedule XI);
 - iv. Regional Level (Designated Regions per schedule XII); and
 - v. National Level (Party Headquarters);
- b) The Executive Committees at all levels shall exercise such powers and functions as may be delegated to them by the National Delegates Convention and/or National Governing Board or National Executive Council;
- c) The National Executive Council may establish any party organ as it may deem appropriate and cause its duties and responsibilities to be published in the party rules.
- g) The affairs of the party shall be managed as provided for by the organs in this Constitution and the party rules.
- h) The secretariat is the administrative organ of the party;

Party Organs

11.2 For the time being and until decided by the stated relevant organs, the organs of the Party shall be:

- a) The Polling Station Committee (PSC)
- b) The Sub - Branch (SBA)
 - i. The Sub - Branch Committee
- c) The Branch Association (BA)
 - i. The Branch Executive Committee
- d) The Local Traditional Council (LTC)
- e) The County Association (CA)
 - i. The County Working Committee
 - ii. The County Delegates Convention
- f) The Regional Representative Council (RRC)
 - i. The Regional Representative Council
 - ii. The Regional Representative Convention
- g) The National House of Elders (NHE)
- h) The Board of Trustees (BOT)

- i) The Nominations and Elections Board (NEB)
- j) The National Executive Council (NEC)
- k) The National Governing Board (NGB)
- l) The National Delegates Convention (NDC)
- m) The National Secretariat (NS)
- n) The SFUP National Youth Chapter (SNYC)
- o) The SFUP National Women Chapter (SNWC)
- p) The SFUP Persons with Disabilities Chapter (SPDC)
- q) The SFUP Minority and Marginalized Chapter (SMMC)
- r) The SFUP Diaspora Chapter (SDC)
- s) The National Caucus
 - i. The Party Elected Leaders Group (EPLC)
- t) The Standing Committees
 - i. The Supreme Advisory Committee
 - ii. The Strategic Policy and Consultation and Rules Committee
 - iii. The Finance and Resource Mobilization Committee
 - iv. The Internal Audit Committee
 - v. The Nominations and Candidates Selection Committee

ARTICLE 12

The Polling Station Committee (PSC)

12.1 The Party shall establish a Polling Station Committee in every polling station consisting of:

- a) Chairperson;
- b) Deputy Chairperson;
- c) Secretary;
- d) Assistant Secretary;
- e) Organizing Secretary;
- f) Assistant Organizing Secretary;
- g) Treasurer;
- h) Assistant Treasurer;
- i) A representative of the Woman Chapter;
- j) A representative of the Youth Chapter;
- k) A representative of persons with disabilities; and
- l) Ten (10) other Committee Members as shall be recommended by the NEC.

ARTICLE 13

The Sub – Branch Association (SBA)

13.1 There is hereby established the Sub-Branch Association which shall be the grassroots level of organisation for the Party with the responsibility to observe loyally the resolutions and decisions of the party.

- 13.2 The Branch shall generally consist of not fewer than fifty (20) members of ages eighteen (18) years or over, who qualify for membership in accordance with this Constitution. No person shall be a member of more than one (1) Sub-Branch of the Party.
- 13.3 Without the prior notice and consent of the National Executive Council, the Sub - Branch shall not affiliate with or send delegates to any organisation not affiliated with the Party.

The Sub - Branch Committee

- 13.4 There shall be established the Sub - Branch Committees to manage the affairs of the wards and polling stations and be responsible for the Party's activity within a defined Ward in Kenya and committee shall consist of the following members who shall be elected by and from the party members of the ward and the polling stations:
- a) The Chairperson,
 - b) The Deputy Chairperson,
 - c) The Secretary,
 - d) The Organizing Secretary,
 - e) The Secretary for Youth Affairs
 - f) The Secretary for Women Affairs,
 - g) The special interest/or marginalized representative,
 - h) Persons with disability representative, and
 - i) Two committee members shall come from all the designated polling stations within the ward.
- 13.5 The Branch Executive Chair, shall be an *ex-officio* member.

ARTICLE 14

The Branch Association (BA)

- 14.1 There shall be established Branch Offices in all the forty-seven (47) counties, as part of the primary level of organisation for the Party, which shall be responsible for the Party's activity within a defined Constituency as determined by the IEBC from time to time. The formation of branches shall be done after party elections.
- 14.2 It shall be the duty of the Branch Executive to ensure that the Branch comprises such membership so that it functions as an effective organisational unit of the Party which shall generally consist of not fewer than fifty (50) members of ages eighteen (18) years or over, who qualify for membership in accordance with this Constitution.
- 14.3 No person shall be a member of more than one (1) Branch of the Party or Branch constituted to deal with special community interests; provided that at the time of joining the Party or upon annual renewal, a member shall elect and designate no more than two (2) branches at which they will exercise their voting rights.
- 14.4 The Branch categories shall include:
- a) **Headquarters Branch:** This is a general branch formed to serve in Nairobi for those who have no access to any branch within their close proximity.
 - b) **Special Community Interests Branch:** This shall consist of members of the Party who wish to be constituted to deal with special community interests such as the following;

- i. **Campus Branch** (and others of a similar nature): This shall consist of at least fifty (50) persons, who shall be members of any learning institution. A campus shall be understood to refer to any secondary or post-secondary institution and such a campus club must comply with the provisions of this constitution to the satisfaction of National Executive Council.
- i. **Disabilities Branch:** This shall consist of at least fifty (50) members of the deferentially able persons who qualify for membership in accordance with the provisions of this Constitution.
- ii. **Entrepreneurs, Community-Based Organisations and Self-Help Group Branch:** This shall consist of at least fifty (50) members of the persons owning small, medium or large businesses or enterprises, and qualify for membership in accordance with the provisions of this Constitution.

14.5 To open an Official Party Branch:

- a) The founder members of the branch shall be resident in that particular Constituency.
- b) Dispensations from sub-rule (a) above are not available for those wishing to participate in the establishment of a new branch.
- c) The members shall make applications to the National Executive Council to form a new branch by the procedure set out in this constitution;
- d) The number of members shall be as required by this Constitution;
- e) The payment of any levies or membership fees shall be as required by this constitution;
- f) The branch shall have the necessary arrangements in place to conform with party accounting requirements;
- g) Subject to the provisions of party leadership explained herein, each Branch shall have control of its own affairs and may organise their members into Groups for the purposes of more efficient organisation;
- h) The Branches shall conduct their business in accordance with, and contribute to, the Party's strategic aims and operational objectives;
- i) The Branch Secretaries shall forward membership register to Head Office before 31 December of each year which also identifies:
 - i. List of Membership complete with details of the members and categories of membership as required by this constitution;
 - ii. Positions held by male/female members including officers and delegates to Convention s;
 - iii. Specific seminars or courses or meetings held in the previous twelve months that aimed to achieve the greater involvement of members;

14.6 The Branches shall have the right to communicate and work with all other branches within the same or different County, or any affiliates within the Party as the party shall deem appropriate and necessary. However, the Branches shall not, without the prior consent of the National Executive Council, affiliate with or send delegates to any other party or organisation not affiliated with the Party.

14.7 If a Branch fails to hold its meetings as prescribed herein for a period of 12 months or fails to be represented at its regional meetings for three (two) consecutive meetings and efforts by the National Executive Council or other bodies have failed to revive it, it shall be wound up.

ARTICLE 15

The Local Traditional Council (LTC)

- 15.1 Pursuant to the Article 11. (1) of the Constitution of Kenya, which recognizes culture as the foundation as well as the cumulative civilization of the Kenyan people, and also Kenya's Traditional Knowledge and Cultural Expressions Act 2016 and the National Museums and Heritage Act (Cap. 216) of 2006, the party shall have a Local Traditional Council within each branch.
- 15.2 A Local Traditional Council member means any person of 65 years and above who shall subscribe to the Constitution and policy of the Party and is not a member of any other political Party, or any other group or organisation or registered council which is declared by the National Delegates Convention or National Governing Board to be incompatible with membership of the Party.
- 15.3 The name and relevant details of all the members of the Local Traditional Council from each traditional area within the ward or a branch shall be stated in the Party's National Register maintained in accordance with this Constitution.
- 15.4 As soon as practicable, after any change occurs in the membership of a Local Traditional Council at the Branch, the council shall notify the Branch Executive which shall in turn notify the National House of Elders who shall cause the National Register to be altered accordingly.
- 15.5 The Local Traditional Council shall exercise such powers, subject to any limitations imposed by the statutes of the Constitution of Kenya and other laws, and all other express legal restrictions by this Constitution.
- 15.6 Each Local Traditional Council shall:
- a) cultivate the traditional Identity, culture, heritage, language, native arts and crafts of the community;
 - b) actively promote non-violence and a culture of dialogue, mediation, reconciliation and cooperation;
 - c) play an important role in civil conflict prevention and resolution, disarmament, peace-building and peacekeeping;
 - d) help build a culture that promotes safe participation of elders in politics;
 - e) equip the community to stand against any forms of harassment and abuse of any member of the community;
 - f) protect and preserve the property and natural resources of the community;
 - g) with express approval of the National Executive Council, negotiate with the National and County Governments on behalf of and the interest of the Community;
 - h) establish mechanisms that enable their communities to prevent the misappropriation, misuse or unlawful access and exploitation of traditional knowledge, natural resources and cultural expressions;
 - i) consult with elected representatives within the ward, constituency and county to address any shortcomings that may affect the economic progress of the local community and the social justice system;
 - j) participate in all the economic affairs and enterprises of the community in accordance with the terms of the branch charter;
 - k) prevent the sale, disposition, lease, or encumbrance of community land, interest in land or waters or in other assets of the Community without proper consultation with family or the chiefs and the Community at large;
 - l) provide for the guardianship of the persons and property of minors and mental incompetents or abandoned or idle land consistent with all prevailing legal requirements;

- m) aid needy members of the community and advocate for the protection of the general social welfare of the vulnerable in the community;
- n) provide advice for filling of vacancies in the party positions or elective positions consistent with this Constitution;
- o) participate in public participation forums and freely exchange ideas and information without undermining the authority and integrity of the Party and the government;
- p) have such further powers as may in the future be delegated to the Council by members of the Community, National Executive Council and other organs of the party.

15.7 The Local Traditional Council shall not restrict or in any way abridge the rights 'of its members guaranteed under this Constitution, rather they shall have a duty to see that the full constitutional rights are maintained and preserved.

15.8 All members of the community shall be accorded equal right and opportunity to participate in the Council's activities and enjoy the resources, property and benefits of this organization.

ARTICLE 16

The County Association (CA)

16.1 There shall be established a County Association in each of the 47 Counties and shall consist of the following members:

- a) The County Chairman, who shall be the Chairman;
- b) The members of the County Working Committee;
- c) The Party Leader and Deputy Party Leader;
- d) The President and Deputy President, who are members of the party;
- e) The Governor, Deputy Governor and gubernatorial candidates, who are members of the party;
- f) The County Ministers, who are members of the party from the County.
- g) The Members of the Board of Trustees from the County;
- h) The Ambassadors, who are members of the party from the County;
- i) All National Executive Council members of the party from the County;
- j) The Special Advisers and Special Assistants to the President and Deputy President who are members of the party from the County;
- k) The Senator, the Speaker of the Senate and his Deputy, Majority Leader and his Deputy who are members of the party;
- l) The Speaker, Deputy Speaker, Party Chief Whip and Deputy Chief Whip in the National Assembly, who are members of the party;
- m) The Speaker, Deputy Speaker, Party Chief Whip and Deputy Chief Whip in the County Assembly, who are members of the party;
- n) All the members of the County, National Assembly, and Senate who are members of the Party from the County;
- o) All Branch Officer Bearers including leaders of Youth, Women and differentially able who are members of the Party from the County;
- p) Three delegates per Ward at least one of whom shall be a woman, all of whom shall cease to function at the conclusion of the meetings for which they were elected;
- q) Former members of County Working Committee who are still members of the Party;

- r) Former Governors and Deputy Governors produced by the Party who are still members of the Party; and
 - s) Former Speakers and Deputy Speakers of the County Assembly produced by the Party who are still members of the Party.
- 16.2 The meetings and conduct of County Associations shall be governed by the County Association Rules.
- 16.3 The National Executive Council may, on stating reasons, dissolve any County Association and make interim provision for performance of the responsibilities of the County Association until a new County Association can be created.
- 16.4 There shall be a County Working Committee which shall consist of:
- a) The County Chairman;
 - b) The Deputy Chairman;
 - c) The County Treasurer;
 - d) The County Youth Leader;
 - e) The County Woman Leader;
 - f) The County Publicity Secretary;
 - g) The County Organizing Secretary;
 - h) The County Executive Coordinator;
 - i) The County Special Interest & Disability Representative;
 - j) Any two other members from the Branches, one of whom shall be a woman.
- 16.5 Branches shall be allocated a number of delegates in accordance with the rules provided for nomination.
- 16.6 The Branch Chairpersons shall convene to elect the County Executives which include the Chairperson, their deputies and other officials of the County Working Committee which shall be held on a rotation basis for a period of three (3) years.
- 16.7 The County Executive Coordinator who shall be the County Secretary shall be appointed by the National Secretariat in consultation with the appointed by the Secretary General. The County Executive Coordinator shall work under the direction of the County Working Committee but report to the Secretary General through Executive Director.
- 16.8 His/her responsibilities shall be;
- a) the custodian of all the County property, management of the County office, books of accounts, minute books, membership register and all the records of the party at the County;
 - b) responsible for overseeing the management of the sub-branch, and Branches within the County;
 - c) advise the party regarding appropriate candidates to run for elections on the Party tickets;
 - d) oversee membership recruitment voter mobilization;
 - e) assist in planning for party operations, campaign activities and logistics within the County;
 - f) submit a quarterly report to the Secretary General through National Secretariat; and
 - g) perform such other duties as shall be directed by the Secretary General.
- 16.9 The County Working Committee shall meet every quarter at the instance of the Chairman. An extraordinary meeting of the County Working Committee shall be held if requested by two-third of the

members of the Committee and such a meeting shall be held within fourteen (14) days of the request.

16.10 The quorum of the County Working committee shall be one third of the members of the Committee and a simple majority shall pass any motion of the Committee.

ARTICLE 17

The Regional Representative Council (RRC)

17.1 There shall be established the Regional Representative Council whose formation shall be by way of clustering together of Counties within a particular geographical area and in close proximity thereby forming 13 geo-political regions across the country *as illustrated in Schedule XII hereto*.

17.2 The aim of the regions shall be to operate collectively to better achieve the Party Vision and Values and engage in shared economic activities that benefit the counties involved; provided that each County will continue to retain their distinct responsibility for its own membership.

17.3 Each Region Council shall conduct its affairs through its representational structure.

17.4 Each Region shall be of a sufficient size to:

- a) provide a diversity of experience from the Counties forming it;
- b) ensure support synergy between the Counties through well organised and strong Branches;
- c) ensure that County Representatives can attend regional meetings and convention without undue travelling time and costs.

17.5 Any of the regions may from time to time and subject to the prior approval of 75% of the Counties forming a particular region, be adjusted or altered from those existing to a New Formed Region as circumstances or the party may deem fit and ratified the National Governing Board.

17.6 There shall be Regional Executive Officials which shall consist of:

- a) The Regional Chairperson;
- b) The Regional Deputy Chairperson;
- c) The Regional Secretary;
- d) The Regional Treasurer;
- e) The Regional Organizing Secretary;
- f) The Regional Women League Representative
- g) The Regional Youth League Representative
- h) The Regional Special Interest Representative

17.7 The Regional Executive Office shall meet at least once in every quarter after the County Working Committees have met. The Regional Chair will play a liaison role between the Region and the National Office.

17.8A Regional Representative Council shall comprise members who are delegates from Counties within that region, and include all other representatives of party organs as follows;

- a) The Regional Executive Officials (Regional Chairperson shall Chair)
- b) The Party Leader and the Deputy Party Leader;
- c) The National Chairperson and Deputy National Chairperson;
- d) The President and Deputy President of Kenya, if members of the party;

- e) The Special Advisers to the President and the Deputy President;
- f) The County Governors and Deputy Governors from the Region, if members of the party;
- g) The Special Advisers to the Governor and the Deputy Governor;
- h) All the officials of the County working Committees from the Region;
- i) One ex-officio member from the National Executive Council and National Secretariat;
- j) The Traditional Council Representative from each of the branches of the party from the Region;
- k) All the Members of the Branch and Board of Trustees Chairpersons from the Region;
- l) All delegates to the National Delegates Convention from all the Counties in the Region;
- m) The Members of the County, National Assembly, Women Reps and Senate who are members of the party (Both Elected and Nominated) from the Region;
- n) The Speaker, Deputy Speaker, Party Leader and Party Whip in the Senate, who are members of the party (Both Elected and Nominated) from the Region;
- o) The Speaker, Deputy Speaker, Party Leader and Party Whip in the County Assembly and the National Assembly in the Region, who are members of the party (Both Elected and Nominated) from the Region;
- p) Such other additional persons who may be co-opted to be members of the Regional Executive Council provided that the Branch Chairs in the Region must at all times comprise the majority of the voting members of the Council.

ARTICLE 18

The National House of Elders (NHE)

- 18.1 In accordance with Article 57 of the Constitution, there shall be established the National House of Elders, whose membership shall be open to all Party members aged between 65 and 90 years and shall be subject to the general control of the National Executive Council.
- 18.2 The Local Traditional Council shall elect a paramount head who shall be the chairperson of the local council subject to the rules for office bearers' nominations and elections as prescribed in this Constitution and shall be the County Representative at the National House of Elders when elected as such to represent the interest of that region from which they are appointed.
- 18.3 There shall be a National Elders Committee consisting of Chair, Deputy-Chair, Secretary, Deputy Secretary, Treasurer, Deputy Treasurer, Organizing Secretary, Deputy Organizing Secretary and ten committee members which shall govern all the affairs of the council between National Delegates Conventions. The local traditional heads from the branches may hold an annual Convention or attend the County Delegates Convention to elect the office bearers and the committee.
- 18.4 The Paramount heads of the branch traditional Councils shall form a county caucus to elect one of their own as the Head Representative of the county to the National House of Elders on a two-yearly rotational basis.
- 18.5 Subsequently, the Chairperson of the National House of Elders shall be elected by the Head Representative from the Counties at a Convention which shall be organised by the National Executive Council or during the National Delegates Convention or a special Convention organised for this specific agenda or as the case may be from time to time and shall hold office on a three-yearly rotational basis *as illustrated in Schedule VIII hereto*.

- 18.6 Once an Elder is appointed as Chair at National level, his position at the branch automatically become vacant and the branch shall arrange to elect another chair from amongst them who will serve for a two-yearly rotational basis. The other office bearer shall be elected using the same approach and principles in this constitution.
- 18.7 The Nominations and Elections Board in consultation with the National Executive Council shall supervise the election of the office members of the National House of Elders. The National Party Chairman or persons nominated by the Chairperson in writing shall be the Returning Officer for the election.
- 18.8 A person shall not qualify to be chair or deputy-chair of the National House of Elders if that person;
- a) has been convicted for treason, crime or for an offence involving the security of the State, fraud, dishonesty or moral turpitude; or
 - b) is adjudged to be a person of unsound mind;
 - c) having been declared insolvent or bankrupt under a law in force in the Republic or in any other country, is an undischarged insolvent or bankrupt; or
 - d) on health grounds due to age or otherwise determined by the NEC.
- 18.9 The Deputy Chairperson shall:
- a) be elected by the members of the National House of Elders from among their number;
 - b) act as the head and perform the functions of the Chair of the House in the absence of the Chair;
- 18.10
- a) Where a vacancy occurs in the office of the Chair, Deputy-Chair or a member of the National House of Elders, and a successor is required, the member shall be drawn from the specified region from which the vacated member belonged unless this requirement is otherwise determined by the National Executive Council;
 - b) The National Executive Council shall be notified in writing within fourteen days of the occurrence of the vacancy and shall publish the notice in the Party Bulletin or any other prescribed means, convene a meeting of the National House of Elders within twenty-eight (28) days after the publication;
 - c) The County Working Committee shall be notified by the National Executive Council to convene a meeting within twenty-one days to elect a new Head Representative to fill the vacancy, and shall be taken to be elected if the person obtains a simple majority of the votes cast;
 - d) The new member shall hold office for the unexpired term of the vacating member but shall maintain their branch position;
 - e) An election shall not be held if less than one-half of the Elders in the House are present, or an insufficient number of Elders is present, or no elder obtains a majority of votes cast;
 - f) The National Executive Council shall publish in the Party Bulletin notice of the result of the election signed by the Chairman of the National Governing Board or any other authorised official by the Chairman of the National Governing Board in writing;
 - g) The conduct of the National House of Elders shall be governed by National House of Elders Standing Orders.

ARTICLE 19

The Board of Trustees (BOT)

- 19.1 There shall be established a Board of Trustees of the party duly registered pursuant to the provisions of the Trustees (Perpetual Succession) Act, Cap 164, Laws of Kenya, or such other legislation amending, repealing, or otherwise altering the said Act.
- 19.2 The Supreme Advisory Committee in consultation with the NEC will appoint the Trustee chairman and Members who will be approved by the NDC.
- 19.3 The terms of appointment, conditions of service, functions and powers of the Board of Trustees shall be in accordance with the Trust Deed and Rules. A person appointed as a Trustees shall hold office for a term of five (5) years and shall be eligible for re-appointment at the expiry of the term.
- 19.4 Notwithstanding the provisions of the Trust Deed and Rules and or in addition to the said provisions, the Board of Trustees shall have the power to hold and acquire, and by instruments under the common seal to convey, transfer, assign, charge and demise any movable or immovable property or any interest therein now or hereafter belonging to, or held for the benefit of, the Party in the same manner and subject to such restrictions and provisions as may be imposed by the National Executive Council.
- 19.5 All land, buildings and any other assets, investments and securities that may be acquired by the Party shall be vested in the names of the Trustees. No property of the party shall be used by a trustee for individual gain or disposed, sold or otherwise transferred without the express authority of NEC.
- 19.6 The Board of Trustees which shall consist of:
- a) All founding fathers and founding mothers of the party;
 - b) All past Presidents and Deputy Presidents of Kenya, who held or hold the respective posts as members of the party and who are still members of the party;
 - c) All Past National Chairmen, Deputy National Chairmen and National Secretaries, who are still members of the party;
 - d) All past Speakers of the Senate and Speakers of the National Assembly who are still members of the party;
 - e) Person(s) not exceeding six, who have contributed immensely to the growth of the party and found suitable by the National Governing Board.

ARTICLE 20

Nominations and Elections Board (NEB)

- 20.1 The Nomination and Election Structure and will consist of the following: -
- a) National Executive Council (NEC)
 - b) Nominations And Elections Board (NEB)
 - c) Nominations and Candidate Selection Committee (NCSC)
 - d) Returning Officers (RO)
 - e) Presiding Officers (PO)
 - f) Polling/Counting Clerks
 - g) Scrutineers
 - h) Security Officers Clerks
- 20.2 There is hereby established, an autonomous **Nominations and Elections Board** (hereinafter “**the Elections Board or NEB**”).

- 20.3 The Elections Board will be appointed by NEC on the recommendations of the Supreme Advisory Committee and will comprise of not less than five (5) and not more than twelve (12) knowledgeable individuals of good standing and respectable with high integrity and do not hold any elective party position.
- 20.4 The Elections Board members shall include:
- a) a Chair, Deputy-Chair and Secretary,
 - b) a Election Administrator and Campaign Coordinator;
 - c) a person representing special interest groups;
 - d) at least one-third of either gender;
 - e) the Executive Director as an ex- officio member;
 - f) five other members appointed by NEC
- 20.5 During its first meeting, the Election Board shall elect one of their members who shall be of the opposite gender to the chairperson to be a deputy chairperson and another to be a Secretary to the board from among themselves. The Board Members must consist of individuals from different ethnic groups.
- 20.6 The Elections Board shall serve for a term of four (4) years and are eligible for re-appointment at the expiry of their term, subject to a maximum of two (2) consecutive terms.
- 20.7 The Elections Board shall receive secretarial and other support services by the National Secretariat in the discharge of its mandate.
- 20.8 In order to manage the complex requirements of any elections or campaigns, the election board shall constitute and appoint, as it deems fit, a number of Nominations and Candidate Selection or Party Listing Committees in the Counties with large degrees of responsibility to support its conduct of free and fair party elections.
- 20.9 The National Executive Committee shall appoint an Appeals Board comprising of Five (5) members to handle all disputes arising out of the Party's Presidential, Gubernatorial, Parliamentary and County elections. Its decisions shall be final.
- 20.10 A person shall be qualified for appointment as a member of the Nominations and Elections Board if such person:
- a) is a Kenya Citizens that have attained a minimum age of eighteen (18) years;
 - b) is a fully paid-up member of the Party;
 - c) is experienced in election matters;
 - d) is eligible to vote at an election;
 - e) has not been convicted of an election offence;
 - f) satisfies the requirements on leadership and integrity as specified in this constitution, the Constitution of Kenya and enabling legislations; and
 - g) have a degree from a recognized university and have relevant experience in any or all of the following fields -
 - i. Leadership, Governance and Management;
 - ii. Public administration and Finance;
 - iii. Political Science, Social Sciences, or Humanities

- iv. Law and Electoral matters; and
- v. The chairperson of the NEB shall be a person qualified to hold the office of a Judge of the High Court of Kenya.

20.11 A NEB member may be removed from office on the following grounds;

- a) is declared bankrupt;
- b) death of the board member;
- c) becomes mentally incapacitated;
- d) declares an interest in a particular nomination;
- e) if the Board Member resigns or defects the Party;
- f) acts that may be deemed as gross misconduct while performing his/her duties;
- g) seriously violates the Party Constitution, Nomination and Election Rules or the Code of Conduct;
- h) convicted of an election offence or criminal offence that carries a sentence of at least six months with no fine; or
- i) the court finds that the member has violated provisions of chapter six of the Constitution of Kenya, 2010

20.12 A person desiring the removal of a member of the Board or the Board itself must make an Application to the National Executive Council stating the reasons for such removal.

ARTICLE 21

The National Executive Council (NEC)

21.1 The National Executive Council of the Party shall be the executive organ of the Party mandated to prescribe the strength and the manner in which party organs will be constituted and managed. The members of the National Executive Council shall be ratified by the National Delegates Convention or a special NDC and hold office for a term of four years that is renewable only once save for;

- i. The Secretary, Parliamentary Section Affairs, (County, National Assembly and Senate), who shall be elected by the Parliamentary Caucus and ratified by NEC;
- ii. The leadership of Members of Parliament and County Assemblies, Governors, Deputy Governors, the Chairperson of Board of Trustees and National Chairperson House of Elders, shall be elected by their respective groups;

21.2 The National Executive Council shall consist of the following members:

- a) All the National Office Bearers;
- b) The Executive Director as ex-officio member; and
- c) Such other persons as the NEC may recommend.

It is hereby provided that:

21.3 A person shall cease to be a member of NEC by:

- a) Written resignation;
- b) Death or insanity;
- c) Ceasing to hold a party position that qualifies such a person to be a member of NEC; and
- d) Any other reason stated in this constitution or party regulations.

ARTICLE 22

The National Governing Board (NGB)

22.1 The National Governing Board ("the Board") shall be the second highest organ of the Party, elected by the members of the Party in accordance with this Constitution to govern all the affairs of the Party between National Delegates Conventions. Its decisions shall be binding on the Party and on all members, unless and until rescinded or modified by a National Delegates Convention.

22.2 The National Governing Board shall consist of the following members:

- a) All members of the National Executive Council;
- b) All Chairpersons of Regional Representative Council;
- c) All Chairpersons of County Associations;
- d) All Chairpersons of the Branch Executive Committees;
- e) All Chairmen of Party's Standing Committees;
- f) All members of the Party's Parliamentary Group;
- g) All members of the Nominations and Elections Board;
- h) All Majority or Minority leaders of County Assemblies;
- i) All National Officials of SFUP Women Group;
- j) All National Officials of SFUP Youth Group;
- k) All National Officials of the Board of Trustees;
- l) All National Officials of the National House of Elders;
- m) All members of the Council of Governors & the Deputy Governors;

22.3 It is hereby provided that:

- a) The election of the National Governing Board, shall be undertaken at the National Delegates Convention;
- b) The National Governing Board shall be elected for a term of four years and shall then retire or be eligible for re-election for a maximum of two terms;
- c) Any member may upon writing to the Secretary, resign their position at the Board at any time.
- d) Any casual vacancies occurring in membership of the National Governing Board, shall be filled by the Board, making the appointment effective until the next National Delegates Convention, at which the appointee shall retire or may stand for election by the delegates;
- e) Where necessary, the National Governing Board shall establish an Appointments Committee to work together with the Nominations and Elections Board prior to each election of its members and shall consist of not more than nine members of the Board who are not standing for office at the election to fill the vacancy;
- f) The Appointments Committee, shall interview each candidate for membership of the National Governing Board and shall conduct such other investigation to obtain such information as shall be necessary to satisfy itself as to the suitability of each candidate for election to hold office as a member of the Board;
- g) The committee shall certify to the Board as to the candidate's suitability and such certification shall be a pre-requisite to the entry of the name of a candidate to be voted;
- h) A candidate will be excluded who is bankrupt, has a criminal record (other than a traffic offence), who is disqualified as a director under the Companies Act, or whose candidacy in the opinion of the

Appointments Committee, would be detrimental to the Party. The Board and the Appointments Committee shall not be required to give any reason for excluding a candidate.

ARTICLE 23

The National Delegates Convention (NDC)

- 23.1 The National Delegates Convention of the Party shall be the supreme governing body and the controlling authority in all matters pertaining to the party and through which the rights of the members of the Party are exercised.
- 23.2 All officers and organs of the party shall be bound in the exercise of their functions by the decisions of the National Delegates Convention.
- 23.3 The policies of the party derived from the resolutions of the National Delegates Convention shall be amended or revoked only by a subsequent resolution of the National Delegates Convention.
- 23.4 The National Delegates Convention of the party for both Annual and Special shall primarily consist of the following, all who are members of the party:
- a) All members of the National Executive Council;
 - b) All members of the Nominations and Election Board;
 - c) All Branches, County and Regional Chairmen and Secretaries;
 - d) All members of the Party Parliamentary Group;
 - e) All members of the Board of Trustees;
 - f) All ambassadors, who are members of the party;
 - g) The President and Vice president of the Republic of Kenya, (Or the Candidates);
 - h) All Members of the Council of Governors & the Deputy Governors who are members of the party;
 - i) All governors and deputy governors, (Or the Candidates) who are members of the party;
 - j) All the Ministers and Secretaries who are members of the party;
 - k) All members of the National and County Assemblies, who are members of the party;
 - l) All Minority or Majority leaders in each County Assembly who are still members of the Party;
 - m) All National Officials of the SFUP Youth, Women and Disability and Minority Groups;
 - n) All the Special Advisers and Special Assistant to the President and Deputy President of the Republic of Kenya, who are members of the party;
 - o) All former presidents and leaders and their deputies, who are members of the Party;
 - p) All former members of the National Executive Council who are still members of the Party;
 - q) All former Governors, Senators and Speakers of the National Assembly and Senate, who are still members of the Party;
 - r) One person representing the marginalized persons drawn from each county;
 - s) Respective branches shall elect three NDC representatives at their annual meetings one of whom shall be of either gender through the formula set out in herein;
 - t) Eight members of the Sub Branch Executive Committee comprising of: Chairperson, Secretary, Organizing Secretary, Treasurer, Secretary for Women Affairs, Secretary for Youth Affairs, persons with disability representative and special interest /marginalized representative;
 - u) Two delegates from each Affiliated Organisation;

- v) All the members of the Party's Standing Committees nominated by the National Executive Council to attend the Convention as delegates;
- w) At least one member from each registered Diaspora Branch specially nominated by the National Executive Council to attend the Convention as delegates.
- x) The maximum number of Delegates present at any National Delegates Convention shall not exceed a number of Delegates approved by the National Executive Council.

23.5 The NDC shall have voting and non-voting delegates and may alter the number of delegates from time to time. Only paid-up members of the NDC are eligible to attend the convention.

23.6 The National Executive Council in consultation with the Supreme Advisory Committee may, in its wisdom, invite individuals who have made special contribution to the Party or who have special skills or experience to attend the Convention with no right to vote; provided always that this category shall include, but not limited, to representatives of other special interest groups, comprising at least two representatives of campus students from any or all colleges.

ARTICLE 24

The National Secretariat (NS)

24.1 There shall be established a National Secretariat which shall be headed by the Executive Director and such number of employees as shall be authorized by the NEC and be guided by the Party Service Charter.

Functions of the National Secretariat

24.2 The National Secretariat shall function directly under the office of the Secretary General but shall also be under the direction and guidance of the National Executive Council (NEC), the National Officials and the National Governing Board.

24.3 The roles and functions of the National Secretariat are broad based and cross-cutting including representation, advisory, liaison, advocacy, administrative, operational and technical in nature and shall function directly under the office of the Secretary General by:

- a) being responsible for the day-to-day administration of the party and reporting to the National Executive Council;
- b) coordinating the transmission of the SG's communications to the members or to the various party organs and facilitate at all times information sharing amongst the National Governing Board, Regional Representative Council, the Ministerial, County and Parliamentary Caucuses;
- c) providing administrative support to the SG in all aspects of management of Party operations, synchronization of Party activities and events, fundraising and resource mobilization, coordination of campaign strategies and voter outreach, membership recruitment, registration, mobilization and maintenance of voters or members register;
- d) supporting the SG in planning, implementing, coordinating, and monitoring of party decisions adopted by the National Delegates Convention and recommendations issued by the National Governing Board;
- e) in consultation with the Finance and Resource Mobilization Committee, preparing of draft strategic plan, the annual work plans, budgets, projects, and programs, including those initiated by the various Working Groups, Party Organs and Committees, for approval by the National Executive Committee;

- f) facilitating cordial working relationships between the Party Organs, and assisting the SG in liaison activities with all Party structures, the Branches, Counties and Regions;
- g) assisting the SG in exercise of external relations with media and other institutions or entities not directly involved with the Party Affairs;
- h) serving as the institutional memory and official record keeper of the Party and in particular managing the website, archives and databases;
- i) service the operations of subsidiary organizations of the Party;
- j) process and clear candidates seeking the party tickets for vie for any seat;
- k) processing the clearance of persons to be appointed by the National Executive Council as Party's nominees to the County Assembly or Parliament;
- l) establish the office of the Diaspora Chapter co-coordinator, which shall be responsible for coordinating the activities of the diaspora chapters.
- m) maintain a National Membership Register where all members shall be listed, subject to periodic verification by an independent auditor appointed by party.
- n) in case of emergency, act on behalf of the Party subject to ratification by the National Executive Council;
- o) perform any other duties as may be assigned by the Secretary General in consultation with the Party Leader and the NEC.

24.4 The National Executive Council shall determine the number and designation of the departments with the National Secretariat and the members of Staff appointed to each department shall be guided by the Party Service Code.

PART 4 - PARTY CHAPTERS, CAUCUS AND COMMITTEES

CHAPTER 7 – NATIONAL CHAPTERS

ARTICLE 25

- 25.1 There is hereby established the party chapters which shall consist of the following:
- a) The SFUP Youth National Chapter (SYNC);
 - b) The SFUP Women National Chapter (SWNC);
 - c) The SFUP Persons with Disabilities Chapter (SPDC);
 - d) The SFUP Minority and marginalized Chapter (SMMC); and
 - e) The SFUP Diaspora Chapter (SDC).
- 25.2 The NEC in consultation with the relevant Chapter stakeholders shall appoint persons eligible for various position in the respective chapters.

The SFUP Youth National Chapter (SYNC)

- 25.3
- a) There shall be an autonomous youth section of the party whose national name shall be the SFUP Youth Chapter (SYNC) which shall be open to all youth members aged between eighteen (18) and thirty-five (35) years who are members of the Party and in good standing as defined by this constitution;
 - a) It shall operate at National, County, Branch, Sub-Branch and Polling Station Levels with an objective of rallying and uniting the youth within and outside the party and empowerment them to confront the challenges facing them;
 - b) It shall operate in accordance to this Constitution as an auxiliary body within the overall structure of the Party with its own principles, rules and regulations as shall be subject to the general direction and approvals of the NEC;
 - c) Application for membership shall be made verbally, electronically or in writing to the nearest party offices or executive committee of the SYNC and confirmation of membership shall be made electronically or in writing.
 - d) Membership of the Youth Chapters shall be as verified by the Branch Executive Committee and communicated to the National Secretariate for updating into the Central Membership Database of all members;
 - e) The party shall, if in its opinion have sufficient reason, charter campus youth clubs which shall be eligible to send delegates to National Delegates Conventions;
 - f) There shall be formed the SFUP Youth National Council ("the SYNC") which shall be the governing arm of the Chapter at National, Regional, Branch, Sub-Branch and Polling Station level as approved by NEC;
 - g) The SYNC Executive Committee at all party levels shall govern all the affairs of the Youth between National Delegates Conventions and shall comprise of Chair, Deputy-Chair, Secretary, Deputy Secretary, Assistant Secretary, Treasurer, Assistant Treasurer, Organizing Secretary, Assistant Organizing Secretary and Ten (10) Committee Members or such other number of members as may be deemed necessary for proper execution of its mandate;
 - h) The SYNC officials at national, county, branch, sub-branch, and polling center levels shall hold an annual Convention to elect their Leader and other Officers;

- i) The SYNC officials shall;
 - i. Be elected and in the same manner as Party officials; and
 - ii. Hold office for a term of four years, and are eligible for re-election upon expiry of their term, subject to a maximum of two consecutive terms.
- j) SFUP Youth National Council at the branch shall be entitled to select up to 3 delegates to attend the National Delegates Convention or Special Convention. The Leader and Deputy Leader of SYNC shall be entitled to full delegateship.
- k) The organization, the functions, the rules and regulations of SFUP Youth National Chapter shall be set out for all branches in conformity with the Party's overall objectives and approved by NEC.

The SFUP Women National Chapter (SWNC)

25.4

- a) There shall be an autonomous youth section of the party whose national name shall be the SFUP Women Chapter (SWNC) which shall be open to all women members of the Party and in good standing as defined by this constitution;
- b) It shall operate at National, County, Branch, Sub-Branch and Polling Station Levels with an objective of rallying and uniting the women within and outside the party and empowerment them to confront the challenges facing them;
- c) It shall operate in accordance to this Constitution as an auxiliary body within the overall structure of the Party with its own principles, rules and regulations as shall be subject to the general direction and approvals of the NEC;
- d) Application for membership shall be made verbally, electronically or in writing to the nearest party offices or executive committee of the SWNC and confirmation of membership shall be made electronically or in writing.
- e) Membership of the Women Chapters shall be as verified by the Branch Executive Committee and communicated to the National Secretariate for updating into the Central Membership Database of all members;
- f) There shall be formed the SFUP Women National Council ("the SWNC") which shall be the governing arm of the Chapter at National, Regional, Branch, Sub-Branch and Polling Station level as approved by NEC;
- g) The SWNC Executive Committee at all party levels shall govern all the affairs of the Women between National Delegates Conventions and shall comprise of Chair, Deputy-Chair, Secretary, Deputy Secretary, Assistant Secretary, Treasurer, Assistant Treasurer, Organizing Secretary, Assistant Organizing Secretary and Ten (10) Committee Members or such other number of members as may be deemed necessary for proper execution of its mandate;
- h) The SWNC officials at national, county, branch, sub-branch, and polling center levels shall hold an annual Convention to elect their Leader and other Officers;
- i) The SWNC officials shall;
 - i. Be elected and in the same manner as Party officials; and
 - ii. Hold office for a term of four years, and are eligible for re-election upon expiry of their term, subject to a maximum of two consecutive terms.

- l) SFUP Women National Council at the branch shall be entitled to select up to 3 delegates to attend the National Delegates Convention or Special Convention. The Leader and Deputy Leader of SWNC shall be entitled to full delegateship.
- m) The organization, the functions, the rules and regulations of SFUP Women National Chapter shall be set out for all branches in conformity with the Party's overall objectives and approved by NEC.

The SFUP Persons with Disabilities Chapter (SPDC)

25.5 There shall be an autonomous youth section of the party whose national name shall be the SFUP Persons with Disabilities Chapter (SPDC) which shall be open to all Persons with Disabilities or Special Needs persons who are members of the Party and in good standing as defined by this constitution;

- a) It shall operate at National, County, Branch, Sub-Branch and Polling Station Levels with an objective of rallying and uniting the youth within and outside the party and empowerment them to confront the challenges facing them;
- b) It shall operate in accordance to this Constitution as an auxiliary body within the overall structure of the Party with its own principles, rules and regulations as shall be subject to the general direction and approvals of the NEC;
- c) Application for membership shall be made verbally, electronically or in writing to the nearest party offices or executive committee of the SPDC and confirmation of membership shall be made electronically or in writing.
- d) Membership shall be as verified by the Branch Executive Committee and communicated to the National Secretariate for updating into the Central Membership Database of all members;
- e) The party shall, if in its opinion have sufficient reason, charter campus youth clubs which shall be eligible to send delegates to National Delegates Conventions;
- f) There shall be formed the SFUP Persons with Disabilities National Council ("the SPDNC") which shall be the governing arm of the Chapter at National, Regional, Branch, Sub-Branch and Polling Station level as approved by NEC;
- g) The SPDNC Executive Committee at all party levels shall govern all the affairs of the Youth between National Delegates Conventions and shall comprise of Chair, Deputy-Chair, Secretary, Deputy Secretary, Assistant Secretary, Treasurer, Assistant Treasurer, Organizing Secretary, Assistant Organizing Secretary and Ten (10) Committee Members or such other number of members as may be deemed necessary for proper execution of its mandate;
- h) The SPDNC officials at national, county, branch, sub-branch, and polling center levels shall hold an annual Convention to elect their Leader and other Officers;
- i) The SPDC officials shall;
 - i. Be elected and in the same manner as Party officials; and
 - ii. Hold office for a term of four years, and are eligible for re-election upon expiry of their term, subject to a maximum of two consecutive terms.
- j) SFUP Youth National Council at the branch shall be entitled to select up to 3 delegates to attend the National Delegates Convention or Special Convention. The Leader and Deputy Leader of SPDC shall be entitled to full delegateship.
- k) The organization, the functions, the rules and regulations of SPDC shall be set out for all branches in conformity with the Party's overall objectives and approved by NEC.

The SFUP Minority and Marginalized Chapter (SMNC)

- 25.6 There shall be an autonomous section of the party whose national name shall be the SFUP Minority and Marginalized Chapter (SMMC) which shall be open to all persons, groups or communities who are considered to be minorities and marginalized in accordance with the Constitution of Kenya and other written Laws and are members of the Party in good standing as defined by this constitution;
- a) It shall operate at National, County, Branch, Sub-Branch and Polling Station Levels with an objective of rallying and involving the minority or marginalised groups within and outside the party and empowering them to confront the challenges facing them;
 - b) It shall operate in accordance to this Constitution as an auxiliary body within the overall structure of the Party with its own principles, rules and regulations as shall be subject to the general direction and approvals of the NEC;
 - c) Application for membership shall be made verbally, electronically or in writing to the nearest party offices or executive committee of the SMMC and confirmation of membership shall be made electronically or in writing.
 - d) Membership of the SMMC shall be as verified by the Branch Executive Committee and communicated to the National Secretariate for updating into the Central Membership Database of all members;
 - e) There shall be formed the SFUP Minority and Marginalized Council ("the SMMC") which shall be the governing arm of the Chapter at National, Regional, Branch, Sub-Branch and Polling Station level as approved by NEC;
 - f) The SMMC Executive Committee at all party levels shall govern all the affairs of the Minority and Marginalized between National Delegates Conventions and shall comprise of Chair, Deputy-Chair, Secretary, Deputy Secretary, Assistant Secretary, Treasurer, Assistant Treasurer, Organizing Secretary, Assistant Organizing Secretary and Ten (10) Committee Members or such other number of members as may be deemed necessary for proper execution of its mandate;
 - g) The SMMC officials at national, county, branch, sub-branch, and polling center levels shall hold an annual Convention to elect their Leader and other Officers;
 - h) The SMMC officials shall;
 - i. Be elected and in the same manner as Party officials; and
 - ii. Hold office for a term of four years, and are eligible for re-election upon expiry of their term, subject to a maximum of two consecutive terms.
 - l) The SFUP Minority and Marginalized Council at the branch shall be entitled to select up to 3 delegates to attend the National Delegates Convention or Special Convention. The Leader and Deputy Leader of SMMC shall be entitled to full delegateship.
 - m) The organization, the functions, the rules and regulations of SFUP Minority and Marginalized Chapter shall be set out for all branches in conformity with the Party's overall objectives and approved by NEC.

The SFUP Diaspora Chapter (SDC)

25.7

- a) There shall be an autonomous section of the party whose national name shall be the SFUP Diaspora Chapter (SDC) which shall be open to all persons, groups or communities who are considered of Kenyans Citizens living abroad in accordance with the Constitution of Kenya and other written Laws and are members of the Party in good standing as defined by this constitution;

- b) Members in the Diaspora shall set up Chapters based on cities or States of residence as shall be approved by the NEC; provided that there shall not be more than one branch in any given country except the United States of America which shall have more than one branches;
- c) An overseas branch shall consist of at least 50 members, provided that there shall not be more than one branch in any given city;
- d) A branch so formed shall apply to the Party Headquarters for registration to the National Executive Council in such digital and/or electronic form as may be determined by the Party and upon approval, and upon approval, be furnished with a Certificate to that effect. Other provisions applying to branches in this Constitution shall apply with necessary adjustments (*mutatis mutandis*);
- e) It shall operate in accordance to this Constitution as an auxiliary body within the overall structure of the Party with its own principles, rules and regulations as shall be subject to the general direction and approvals of the NEC;
- f) Subject to the provisions of membership rule under Art. 7.1, members of the Party who reside in countries having diplomatic relations with Kenya, may establish chapters of the Party of not less than 10 members in their places or cities of residence;
- g) Application for membership shall be made verbally, electronically or in writing to the nearest diaspora party branch and confirmation of membership shall be made electronically or in writing.
- h) Membership of the SDC shall be as verified by the Branch Executive Committee and communicated to the National Secretariate for updating into the Central Membership Database of all members;
- i) A member temporarily residing abroad for a continuous period of more than twelve months may retain his/her local membership in the specific branch where they registered or reside but shall notify registered Party Office of his/her forwarding address;
- j) The SDC Executive Committee shall govern all the affairs of the Diaspora between National Delegates Conventions and shall comprise of Chair, Deputy-Chair, Secretary, Deputy Secretary, Assistant Secretary, Treasurer, Assistant Treasurer, Organizing Secretary, Assistant Organizing Secretary and such number of committee members as may be deemed necessary for proper execution of its mandate and approved by the NEC;
- k) The SDC officials shall;
 - i. Be elected and in the same manner as Party officials; and
 - ii. Hold office for a term of four years, and are eligible for re-election upon expiry of their term, subject to a maximum of two consecutive terms.
- l) The organization, the functions, the rules and regulations of SDC shall be set out for all branches in conformity with the Party's overall objectives and approved by NEC;
- m) There shall be established in the National Secretariat of the party, the office of the Secretary of Diaspora Affairs which shall be responsible for coordinating the activities of party in the Diaspora Chapters. The Secretary General and the Secretary for Diaspora Affairs shall co-ordinate the establishment and operations of the Diaspora Branches and chapters;
- n) All Diaspora branches shall meet quarterly and submit progress reports to the Party's Secretary General.

ARTICLE 26

The Party Elected Leaders Group

- 26.1 There shall be a Party Elected Leaders Group of the party who are members of the Party elected to various legislative bodies such as National Assembly (Parliament), County governments (Governors), County Assembly (MCAs), Women Representatives and the Senate within one (1) month of the completion of a general election. The National Assembly, Senate and County Assemblies caucuses shall function under the National Governing Board.
- 26.2 The Party Elected Leaders Group shall consist of:
- a) The Leader of the Group (Chair),
 - b) The Leader and Deputy Leader,
 - c) The President and Vice President of Kenya, who are members of the party,
 - d) All Governors and the Deputy Governors, who are members of the party,
 - e) All the Members of the National Assembly,
 - f) All Women Representatives,
 - g) All Members of the County Assembly,
 - h) All Members of the Senate, and
 - i) The Secretary of the Parliamentary affairs, who shall be the Secretary of the Caucus,
- 26.3 The Leader of the Group and the Secretary for Parliamentary affairs shall be elected by the members immediately after a General Election and shall hold office for a term of four years or for the residue of his/her Parliamentary term as may be current on his/her election, whichever is shorter.
- 26.4 Should at any time a member of the Party Elected Leaders Group ceases to be a member of the Party, he or she shall cease to be a member of the group and if at any time the leadership of the Caucus falls vacant, the group shall appoint a Leader to fill such vacancy as soon as it is practically possible.
- 26.5 The National Parliament and County Assemblies Caucuses shall have rules and regulations in a given standard format for purposes of governing the conduct of its meetings and deliberations provided that such rules shall be laid before the National Executive Council for approval.

Senatorial Assembly Group

- 26.6 There shall be established a Senatorial Assembly Group consisting of all Members of Senate elected on the Party ticket.
- 26.7 Every member of the Senate who is members of the Party shall be deemed to be a member of the Party Elected Leaders Group.
- 26.8 The Party Leader, Deputy Party Leaders, the National Party Chairperson and Deputy Chairperson shall be *ex-officials*.
- 26.9 The other members shall select or appoint their leaders including chairperson, his/her deputy and secretary who shall represent them to the Party Elected Leaders Group.
- 26.10 In the formation of the Senate Assembly Group, the following shall be done:
- a) The SG shall issue a letter to any member of the Senate Assembly to convene a meeting at the National Secretariat for purposes of electing the SA caucus officials.

- b) Positions of chairperson, secretary, treasurer and whip shall be contested by secret ballot.
- c) The election shall be by secret ballot and presided over by the secretary general;
- d) Leadership elected shall be in place unless there is a breach of the Party rules or resignation;
- e) The caucus shall be subject to all party rules.

26.11 The Senatorial Assembly Group shall:

- a) promote and defend Party policies and agenda within the Senate for the advancement of objectives, programs or plans of the Party;
- b) provide a forum for senators who are members of the Party to exchange ideas for attaining the aims of the Party;
- c) consider, review policies, bills, legislations and regulations and motions in parliament and senate that requires party involvement;
- d) perform such other functions as may be delegated to it by Party Elected Leaders Group, National Governing Board or National Delegates Convention.

National Assembly Group

26.12 There shall be established a National Assembly Group consisting of all Members of the National Assembly & the Women Representatives, elected on the Party ticket.

26.13 Every member of parliament who is members of the Party shall be deemed to be a member of the Party Elected Leaders Group.

26.14 The Party Leader, Deputy Party Leaders, the National Party Chairperson and Deputy Chairperson shall be *ex-officials*.

26.15 The other members shall select or appoint their leaders including chairperson, his/her deputy and secretary who shall represent them to the Party Elected Leaders Group.

26.16 In the formation of the National Assembly Group, the following shall be done:

- a) The SG shall issue a letter to any member of the National Assembly to convene a meeting at the National Secretariat for purposes of electing the caucus officials;
- b) Positions of chairperson, secretary, treasurer and whip shall be contested;
- c) The election shall be by secret ballot and presided over by the secretary general;
- d) Leadership elected shall be in place unless there is a breach of the Party rules or resignation;
- e) The caucus shall be subject to all party rules.

26.17 The National Assembly Group shall:

- a) promote and defend Party policies and agenda within parliament for the advancement of objectives, programs or plans of the Party;
- b) provide a forum for parliamentarians who are members of the Party to exchange ideas for attaining the aims of the Party;
- c) consider, review policies, bills, legislations and regulations and motions in parliament and senate that requires party involvement;
- d) perform such other functions as may be delegated to it by Party Elected Leaders Group, National Governing Board or National Delegates Convention.

Governors Group

- 26.18 There shall be established a Governors Group consisting of all Governors and their Deputies elected on the Party ticket.
- 26.19 Every governor and their deputies who are members of the Party shall be deemed to be a member of the Party Elected Leaders Group.
- 26.20 The Party Leader, Deputy Party Leaders, the National Party Chairperson and Deputy Chairperson shall be *ex-officials*.
- 26.21 The other members shall select or appoint their leaders including chairperson, his/her deputy and secretary who shall represent them to the Party Elected Leaders Group.
- 26.22 In the formation of the Governors Caucus, the following shall be done:
- a) The SG shall issue a letter to any member of the caucus to convene a meeting at the National Secretariat for purposes of electing the caucus officials.
 - b) Positions of chairperson, secretary, treasurer and whip shall be contested;
 - c) The election shall be by secret ballot and presided over by the county secretary;
 - d) Leadership elected shall be in place unless there is a breach of the Party rules or resignation;
 - e) The caucus shall be subject to all party rules.
- 26.23 The Governors Group shall:
- a) promote and defend Party policies and agenda within the counties for the advancement of objectives, programs or plans of the Party;
 - b) provide a forum for governors who are members of the Party to exchange ideas for attaining the aims of the Party;
 - c) consider, review policies, bills, legislations and regulations and motions in parliament and senate and county assemblies that requires party involvement;
 - d) perform such other functions as may be delegated to it by Party Elected Leaders Group, National Governing Board or National Delegates Convention.

County Assemblies Group

- 26.24 There shall be established a County Assembly Group consisting of all Members of the County Assemblies elected on the Party ticket.
- 26.25 Every Member of County Assembly who is members of the Party shall be deemed to be a member of the Party Elected Leaders Group.
- 26.26 The Party Leader, Deputy Party Leaders, the National Party Chairperson and Deputy Chairperson shall be *ex-officials*.
- 26.27 The other members shall select or appoint their leaders including chairperson, his/her deputy and secretary who shall represent them to the Party Elected Leaders Group.
- 26.28 In forming the County Assemblies caucuses, the following shall be done:
- a) The SG shall cause a letter to be released to all county secretaries to convene a meeting in their respective county assemblies for purposes of electing the caucus;
 - b) Positions of chairperson, secretary, treasurer and whip shall be contested;
 - c) The election shall be by secret ballot and presided over by the county secretary;
 - d) The results shall be in place unless there is breach of the rules or resignation;

- e) The caucus shall be subject to all party rules.

26.29 The County Assemblies Group shall:

- a) promote and defend Party policies and agenda within the County Assemblies for the advancement of objectives, programs or plans of the Party;
- b) provide a forum for members of the Party to exchange ideas for attaining the aims of the Party;
- c) consider, review policies, bills, legislations and regulations and motions in county assemblies that requires party involvement and harmonization;
- d) perform such other functions as may be delegated to it by Party Elected Leaders Group, National Governing Board or National Delegates Convention.

ARTICLE 27

General Provisions for Standing Committees

27.1

- a) A Standing Committee of the party is a formal organization, internal to the Party, which regroups members on a basis of a particular identity, or around a specific political issue;
- b) Except where otherwise expressly provided in these provision or any other party rules or by the resolution, the National Executive Council shall introduce form, replace or terminate a relevant Standing Committee or Sub-Committee. The NEC may delegate to the such powers but with such limitations as may be thought fit;
- c) The members of the committees shall be in office for four years and shall be eligible for re-appointment at the expiry of their term, subject to a maximum of two consecutive terms;
- d) All members of the standing committees shall hold office upon such terms and conditions as shall be determined by the National Executive Council;
- e) The members of all committees shall assume office upon being sworn into respective offices as set out in *Schedule I* hereto and a member of any committee may be removed from office for gross misconduct, failure to adhere to this Constitution or for any other reason, upon the resolution of the National Executive Council;
- f) All committees will develop their respective rules of procedure; provided that they shall present the said rules of procedure to the National Executive Council for review and thereafter for adoption.

27.2 The Standing Committees of the party shall have clearly stated objectives, which would include but not limited to:

- a) offer a forum for action and information sharing between the party members and leadership;
- b) contribute to policy development in their area of interest for the party;
- c) hold hearings to review bills, conduct markup sessions to discuss and amend bills, and report bills to be debated by the National and County Parliaments or Senate;
- d) launch investigations on matters ranging from budget use, member conduct, and committee charters violations and hold hearings from different witnesses and other parties to gather testimony and evidence;
- e) develop and follow an annual work, action plans and report of its activities plan that is approved by the National Executive Council;
- f) from time to time, as needed, review current policies, develop new policies or update existing ones to comply with all local, county and national laws and guidelines.

PART 5 - DISCIPLINARY MECHANISMS, PARTY FUNDS AND MISCELLANEOUS

CHAPTER 10 – DISPUTE RESOLUTION AND DISCIPLINARY MECHANISMS

ARTICLE 28

Offenses:

- 28.1 Any member, whether individual or as a group or leader, that commits any of the following acts shall be liable for disciplinary action;
- a) joining or advancing the interests of other parties or organizations whose ideologies, and objectives are contradictory to those of the party;
 - b) publicly declaring loyalty to another political party and showing disrespect to the party organs and party officials;
 - c) failure to pay membership subscriptions for a period of at least three (3) months without any justifiable reason;
 - d) unwilling to pay the subscription fees as a persons or groups of persons;
 - e) fails to abide by the Party Constitution and Party Manifesto and engages in anti-party activities that contravenes rules of the party;
 - f) is persistently absent from meetings or other official duties, disobeys, failure, refusal or neglect to carry out lawful directives or instructions of the party;
 - g) engages in corruption, dishonest practices, defrauds the party, its members or officials, and commits fraud or misappropriation of party funds or assets or misuse of party property
 - h) creates unnecessary tension and animosity within the ranks of the Party and engages in unauthorized publicity or creates a parallel party organ at any level;
 - i) commits nepotism, cronyism, corrupting behavior and sexual, racial, or physical abuse of fellow members of the Party;
 - j) says or does anything that amounts to contempt of party organisation and structures and conducts political activities in the name of other political organizations that are parallel to the Party;
 - k) has breached the Party's Code of Conduct and fails, refuses or neglects to treat a petition, complaints or appeal timeously;
 - l) is disorderly and disruptive behavior during Party proceeding to the detriment of the progression of same;
 - m) uses violence or intimidation to suppress competition from other members during Party nominations and primary elections;
 - n) organizes, retains, trains, equips or encourages the organization, retention, training, equipping of any member or group of members for the purpose of employing violence or coercion or any form of intimidation whatsoever;
 - o) the recruitment of voters who do not reside at the address claimed for purpose of manipulating branch meetings or the outcome of an election;
 - p) promotes factions or belongs to any group under the guise of the party and by whatever name called, not being one provided for in this constitution;
 - q) acts improperly or engages in disorderly and disgraceful conduct at meetings or rallies or at any party function that shall bring the name of the Party into disrepute;
 - r) engages in any conduct likely to cause disaffection among members of the party or is likely to disrupt the peaceful, lawful and efficient conduct of the business of the party;

- s) any member vying for any elective seat or acting as the campaign or election agent of any such person, or sponsors or such party which is directly competing with a candidate duly endorsed by the party;
- t) resorts to court action or litigation on any disputes or on any matter whatsoever concerning rights, obligations and duties of any member of the party without first availing himself or herself of the remedies provided by the party under this constitution;
- u) committing such acts as set out in the party regulations and disciplinary rules.

Remedies

28.2 Any member of the party who commits any of the offences listed above shall be liable to any of or a combination of the following penalties:

- a) Fine,
- b) Censure,
- c) Sanction,
- d) Reprimand,
- e) Removal from office,
- f) Expulsion from the Party,
- g) Suspension of membership,
- h) Change in the membership category,
- i) Debarment from holding any party office,
- j) Suspension with a fine, for a period definite.

Internal Dispute Resolution

28.3 As a way to amicably resolve disputes between members of the party, the members and the party, organs of the party or among party officials, there shall be established an internal disputes resolution mechanism.

28.4 The Internal Dispute resolution shall be in accordance to the Kenyan constitutional right to fair hearing and fair administration of justice. There shall be three (3) levels of internal dispute resolution. Those are Sub Branch, Branch and National. Decisions at the sub branch shall be appealed against at the branch, those of the branch at the National whereas those at the National level; shall be final.

28.5 Procedure for various levels of complaints and disputes:

- a) Complaints against Governor(s), MP(s), Senator(s) and National official(s) shall be held and determined at National Executive Council; complaints against County Assembly Representative(s) and branch official(s) shall be heard and determined at Branch Executive Committee; Complaints against sub-branch, ward and polling station officials shall be heard and determined at Sub-branch Executive Council. Once the complaint has been received by SBEC, BEC or NEC; they shall be under duty to inform the accused.
- b) Within 7 days, the party accused may apply in writing to Secretary General or Secretary to the branch or secretary to the sub-branch (as case may apply) for a dispute resolution committee instead of disciplinary committee shall be constituted to attempt to resolve the dispute.
- c) If the request is not received within 7 days or if within the 7 days, no resolution has been reached at the dispute resolution mechanism level, the Secretary General or Secretary to the branch or secretary to the sub-branch shall constitute the disciplinary committee under the direction of the Nationale Executive Committee and shall consist not more than 5 members or the matter shall be

referred to the Disciplinary and Proceedings Committee for necessary action. However, the dispute resolution mechanism provided may extend for another 7 days where necessary by motion of the committee or upon request of the parties and approved by NEC. The reason(s) for such extension shall be communicated in writing to all parties concerned.

- d) Any member may, at any time and without prejudice to any other dispute resolution mechanism provided in this constitution, may attempt at the first instance, seek and settle any complaint or dispute through negotiation, or thereafter any other alternative justice processes including arbitration, mediation, conciliation, reconciliation, and traditional dispute resolution mechanisms;
- e) The mediation shall be conducted under the Nairobi Centre for international Arbitration (NCIA) mediation rules of 2015 or other rules which may be chosen by the parties; rather than imposing a solution, the professional mediator shall work together and sometimes separately with the conflicting sides to explore the interests underlying their positions and help them hammer out a resolution that is sustainable, voluntary, and non-binding;
- f) Members are free to choose any person to facilitate mediation, conciliation or reconciliation either from within the party or from outside the party. The mediators will be engaged on voluntary terms or on such terms as parties to the dispute will agree. Mediation can be effective at allowing parties to vent their feelings and fully explore their grievances;
- g) In arbitration, a neutral third party who shall serve as a judge, is responsible for resolving the dispute. The aggrieved party (ies) shall agree on one or two arbitrators. The arbitrator listens as each side, argues the case and presents relevant evidence, then renders a binding decision. The disputants can negotiate virtually any aspect of the arbitration process, including whether lawyers will be present at the time and which standards of evidence will be used. The arbitrators appointed from the NCIA shall hand down decisions that are usually confidential and that cannot be appealed;
- h) The arbitrators, mediators and conciliators shall communicate the outcome of the mediation, conciliation, or reconciliation to the NEC for adoption. The recommendations of the arbitrators shall be communicated to the National Executive Council in writing who will make its decision and communicate in writing to the Supreme Advisory Committee for ratification.
- i) Members that are dissatisfied with the outcome of any alternative dispute resolution mechanisms shall escalate the dispute to the Disciplinary and Proceedings Committee for consideration;
- j) Members dissatisfied with decisions of the Disciplinary and Proceedings Committee can refer the matter to NEC whose decision in the matter will be final;
- k) A party may nonetheless appeal any such outcome to the Tribunal;
- l) The party will make efforts to establish from its membership a list of qualified dispute resolvers who may be from all sectors and professions and include religious leaders;
- m) The party may make further rules with respect to disciplinary procedures to strengthen its internal disciplinary mechanisms;
- n) It shall be an act of gross misconduct for any member of the party to disregard the dispute resolution and disciplinary mechanism under this Constitution and to proceed directly to court or any other body without exhausting the internal dispute resolution mechanism. Such an act shall earn that member an automatic expulsion from the party. The member so expelled vide this proviso, shall bear the legal costs of the suit filed in any court or any other body.

Disciplinary and Proceedings Committee

28.6

- a) There shall be established an autonomous **Disciplinary and Proceedings Committee** of the Party which is the body that shall have the power to decide on any of the disciplinary measures taken against any member at any level and shall function under the National Executive Council;
- b) The Disciplinary and Proceedings Committee shall have both original and appellate jurisdictions to hear and determine matters relating to or concerning discipline within the party;
- c) The Committee shall comprise of not less than three (3) and not more than seven (7) members of the party including the chairperson who are in good standing, honour and proven integrity. One third of the membership of the committee shall be of either gender;
- d) The Members of the Party Disciplinary and Proceedings Committee, other than the Chairperson, shall be recommended by NEC for appointment by the Party Leader from among persons who:
 - i. Is a citizen of Kenya of aged eighteen (18) years and above;
 - ii. does not holding any other office in the party.
 - iii. is an Advocate of the High Court of Kenya of not less than five years standing and
 - iv. is distinguished members of the Party with good moral standing in society and satisfies the requirements relating to Leadership and Integrity.
- e) The members of the Party Disciplinary and Proceedings Committee shall appoint one from among them to be the Deputy Chairperson and who shall be of the opposite gender to that of the Chairperson;
- f) The Adviser, National Justice, Legal and Constitutional Affairs of the party shall be the secretary of the committee and be responsible for circulating all documents filed in the proceedings amongst the parties;
- g) The members shall remain in office for four years and be eligible for re-appointment at the expiry of their term, subject to a maximum of two consecutive terms;
- h) The Chairman shall be at liberty to decide on all the enquiries, the procedural matters, whether to refer them to other alternative resolution mechanism, or refer such matters to the Committee for decision in his discretion;
- i) The Disciplinary and Proceedings Committee as established under this Constitution shall have the power to receive, hear and determine all cases of discipline concerning Party members. Any Party member may, by a written and or oral complaint reduced in writing, refer to the Committee an issue which may require disciplinary intervention;
- j) The Chairman or the Disciplinary and Proceedings Committee may, in their discretion and at any stage of the proceedings, on request of the parties or on their own motion, dispense with or vary any of the requirements of these rules or make such directions for the conduct of the proceedings as they consider appropriate (including adjourning a hearing on specified terms as to costs);
- k) A Disciplinary issue shall arise on the grounds of misconduct and a member shall be liable to the Party's disciplinary measures if he/she engages in any conduct prescribed and prohibited in this Constitution, in the party rules or National laws;
- l) The Disciplinary and Proceedings Committee shall make its own rules of procedure which shall be approved by the National Executive Committee. The Rules shall comply with written laws of Kenya, the Rule of Law, and Rules of Natural Justice;
- m) The appropriate Branch Executive Committees shall refer any disciplinary for their members to the NEC;

28.7 The Functions and Powers of the Disciplinary and Proceedings Committee shall be to;

- a) receive complaints against any member, or office bearer of the Party and recommend appropriate disciplinary action;
- b) take suo motu cognizance of any news or information against any member, active member or office bearer of the Party and conduct appropriate investigation;
- c) investigate the complaints forwarded by the Branch Executives, County, Party Elections Board or on the proposal of the Secretary General or NEC;
- d) decide whether a complaint has been proved in light of all the relevant facts and evidence before it and, if so, to determine the sanction which ought to be imposed;
- e) reject any complaints on appropriate grounds which shall be communicated to the complainant in writing;
- f) dispose of all disciplinary proceedings within the time frame prescribed and take disciplinary measures against a member of the Party on the grounds of acts of indiscipline or gross misconduct or any of the offenses provided herein, which brings the party into disrepute;
- g) impose punishment arising from any disciplinary decision as provided in this constitution; and
- h) provide an opportunity for one appeal to the next level of the Disciplinary Authority.

Disciplinary Procedures and Rules of Proceedings

28.8 The party shall establish and enforce the Disciplinary Procedures and Rules of Proceedings as follows:

- a) The Disciplinary and Proceedings Committee shall frame its own rules of procedure with the approval of the NEC for conducting disciplinary and appeal proceedings and the disciplinary measures shall be in accordance with written laws of Kenya and rule of natural justice, which may be used to adjudicate, but these shall include the power to admonish, suspend for a specified period or expel a member from the Party;
- b) The Disciplinary and Proceedings Committee shall have the power to impose any penalty provided for under this Constitution or the Disciplinary Rules and this decision is final, unless set aside, varied or substituted by a decision of the NEC in accordance with the Constitution, by a court of law or Tribunal established by law;
- c) The Party Branch, Sub-Branch, or Polling Station shall have no power to suspend or expel a member of the Party. Where an issue of discipline is referred to the Party Branch, Sub- Branch, or Polling Station, it shall constitute a Special Branch Disciplinary and Proceedings Committee to deliberate on the issue;
- d) Where the Branch Committee is of the view that the misconduct is so serious as to invite suspension or expulsion, the Committee shall refer the matter to the Standing Disciplinary and Proceedings Committee at the Party Headquarters which shall summarily review the facts and make an appropriate recommendation to the National Executive Committee. Provided however the Branch/Sub- Branch/Ward or Polling Station shall have the power to censure, fine, or reprimand;
- e) The NEC may appoint an ad hoc committee to investigate and hear disciplinary matters in any County, Branch, Sub-Branch or Polling Station committee;
- f) Any member may, by a written and signed complaint, refer to the Disciplinary and Proceedings Committee an issue of discipline and where an allegation is made against a member of the party, the Committee shall inform the member in writing of the allegations made against him or her and the place and time of hearing the case against him or her;

- g) The parties shall submit written Cases setting out their respective positions on all material matters and annexing all relevant documentary evidence on which they rely. This gives all parties fair notice of the issues in dispute and ensures that the hearing can be conducted efficiently;
- h) The initial burden of proof is upon the Complainant. The strict rules of evidence do not apply; the Disciplinary and Proceedings Committee may, at any stage of the disciplinary proceedings, receive any material, and attach such weight to that material, as it considers appropriate;
- i) The Committee shall not be constrained by any analysis in any complaint letter or other document referred by them or by the way the parties have chosen to present their written Cases and Replies;
- j) Notwithstanding anything to the contrary in these rules, the Disciplinary and Proceedings Committee may inquire into any matter and consider any argument arising from the evidence and/or materials which the Committee considers relevant to the complaint, whether or not it has been previously raised or relied upon by a party, provided that the parties are given a reasonable opportunity to be heard in respect of that matter or argument before any determination is made;
- k) Whilst the procedures allow for oral hearing of the complaint, to be made by the parties if they consider it necessary to do so and which shall be in public unless otherwise determined by the Committee, all relevant matters relied upon by the parties should not unnecessarily repeat if they have been fully addressed in the written submissions; it is therefore anticipated that oral submissions (to the extent they are necessary at all) will be brief;
- l) The principal purpose of the oral hearing is to allow the Committee to question the parties and clarify matters and to afford a fair hearing to such a member appearing before it, to present his or her case orally or in writing either in person or through a counsel of his or her choice or an authorized representative or next friend and shall be allowed to call witnesses;
- m) If any party fails or refuses to make submissions or answer questions on any matter or issue, the Disciplinary and Proceedings Committee shall be entitled to draw an adverse inference against that party;
- n) In certain circumstances, the Committee may invite the parties to consent to a proposed sanction. If the parties so consent, the oral hearing will be dispensed with and the agreed sanction imposed. If either or both of the parties refuse or fail to consent, the proceedings will be dissolved and the matter dealt with afresh by a new Disciplinary and Proceedings Committee;
- o) If the Chairman or the Disciplinary and Proceedings Committee is of the opinion that a party has failed to appear at the hearing or has failed to comply with a requirement of these rules (including the procedural timetable) or of any direction or order, the Chairman or the Committee may take such steps as they consider appropriate including dismissing the complaint without requiring the Respondent to answer the allegations, hearing and determining the complaint without hearing from the Complainant, or making such orders as to costs as they think fit;
- p) Where any question arises as to whether a written Case or Reply complies with the requirements of these rules, the Chairman and the Disciplinary and Proceedings Committee shall only order that the Case or Reply be rejected, revised or supplemented if, in the opinion of the Chairman or the Committee, the defects in the Case or Reply are such as to prejudice the ability of other parties to the proceeding to obtain a fair hearing;
- q) If at any stage in the proceedings, the Disciplinary and Proceedings Committee is of the opinion that no prima facie case is shown for any disciplinary action, the Committee may dismiss the complaint without requiring the Respondent to answer the allegations and without hearing the Complainant;
- r) A decision taken against a member who has not been informed of the charges against him or her or been given any opportunity of defending himself or herself shall be null and void;

- s) The Chairman and/or the Disciplinary and Proceedings Committee may appoint professional advisers, expert witnesses and/or such other persons as the Chairman or the Committee may in their discretion consider appropriate to assist the Committee in any particular proceeding;
- t) The Disciplinary and Proceedings Committee shall, after a determination of facts on a complaint, make recommendation to the National Executive Council of the party who after preliminary hearings, shall have the power to pass a penalty including, but not limited to a reprimand, fine, Censure, Sanction, and Suspension for a definite period, Expulsion or removal from an office where a member has been appointed as a result of being a party member and such decisions shall be final and binding on all parties;
- u) Vacancies created by reason of expulsion or removal from office shall be filled in the same manner as they were originally filled or as provided for in this constitution and any other party rules;
- v) The decision of the Disciplinary and Proceedings Committee shall be set out in writing and shall specify the terms of any orders made and report its finding and decision to the NEC for adoption;
- w) The NEC may act on any recommendations made by the committee appointed under this constitution and any of the parties or members dissatisfied with decisions of the Disciplinary and Proceedings Committee can refer the matter to NEC and any action or decision taken by the NEC shall be final;
- x) The NEC may confirm, vary or substitute the finding and decision of the Disciplinary and Proceedings Committee on Appeal by the concerned Member;
- y) A party may nonetheless appeal any such outcome to the Tribunal.

Disciplinary and Election Appeals Tribunal

- 28.9 There shall be established a Disciplinary and Election Appeals Tribunal (hereinafter referred to as the "Panel" or "tribunal" or the DEAT), composed of not less than three (3) and not more than nine (9) members including a chairperson, a deputy chairperson and a secretary. The Executive Director shall be an ex-officio member.
- 28.10 The panel shall be set up to deal with disputes arising out of the nomination and election process and shall stand dissolved upon conclusion of the nomination process and the period of service which shall be determined by the NEB. The Disciplinary and Election Appeals Tribunal shall have the power to receive, hear and determine all cases or disputes and any matters pertaining to party nominations and elections.
- 28.11 All members shall form a quorum unless otherwise validly specified by the NEB.
- 28.12 The Members of the DEAT shall be recommended by NEB and approved by the National Executive Council from among persons who:
- a) Is a citizen of Kenya of aged eighteen (18) years and above;
 - b) does not holding any other office in the party;
 - c) is an Advocate of the High Court of Kenya of not less than five years standing;
 - d) has any other qualification relevant to election management and deemed by the party as necessary for one to be a member;
 - e) is distinguished member of the Party with good moral standing in society; and
 - f) satisfies the requirements relating to Leadership and Integrity.
- 28.13 The members of the DEAT shall be appointed by the Party Leader on the recommendations of the NEC.

- 28.14 The Elections Board shall, at the time of appointment, designate one member of the panel as the Presiding Chairperson and the members shall elect one of their members as a deputy who shall be of the opposite gender to the chairperson and one to be a secretary.
- 28.15 The chairperson of the NEAB shall be a person qualified to hold the office of a Judge of the High Court of Kenya.
- 28.16 A person shall be qualified to be appointed as a chairperson and member of the DEAT if the person is
- a) Fully paid-up member of the Party
 - b) experienced in dispute resolution;
 - c) Eligible to vote at an election;
 - d) Not been convicted of an election offence;
 - e) Satisfies the requirements of Chapter Six of the Constitution on leadership and integrity.
- 28.17 In constituting the membership of the DEAT, the NEC and party leader shall take into considerations Individuals from different ethnic groups and special interest groups and not more than two-third (2/3) of members of DEAT shall be of the same gender.
- 28.18 No member of the National Executive Council or Disciplinary and Proceedings Committee may be a member of the Panel.
- 28.19 The DEAT shall formulate its rules of procedures that the NEC will approve.
- 28.20 A member of the DEAT shall serve for such period as shall be determined by the NEC and shall be eligible for reappointment provided that a member shall not serve for more than two (2) terms of four (4) years consecutively.
- 28.21 No member of the Tribunal shall, during his or her tenure of office, be an aspirant in any party election or nomination.
- 28.22 A member of DEAT shall only be removed from office on the following grounds;
- a) Resignation
 - b) Violation the Party Constitution, Nomination Rules or the Code of Conduct
 - c) Declaration of an interest in a particular nomination, elective position or party organ
 - d) Becoming mentally incapacitated
 - e) Is declared bankrupt
 - f) Convicted of an election offence or criminal offence that carries a sentence of at least six months with no fine or the court finds that the person has violated provisions of chapter six of the Constitution of Kenya, 2010
 - g) Death.
- 28.23 A vacancy in the office of any of the Disciplinary and Election Appeals Tribunal official will be advertised and the advertisement will specify required qualifications. The advertisement, vetting and replacement of the new member of the Board will be within a period of 14 days.
- 28.24 The DEAT shall hear and determine disputes arising from;
- a) Party elections;
 - b) Party nominations and

c) Party lists for nomination as Member of Parliament or County Assembly.

- 28.25 The panel shall determine appeals arising from party nominations and elections, or arising from endorsement in respect of Candidate Selection Process and, where considered necessary, appeals arising from elections of County and National officials in respect of elections of the Presidential, Governors, Senators, Members of the National Assembly, and County Women Representatives.
- 28.26 Any candidate who is dissatisfied with the outcome in connection with the party elections or vetting and nominations of parliamentary or civic candidates or party elections at all party level has a right as the aggrieved party to personally appeal to the Panel in writing and duly signed by the appellant and forwarded either physically or electronically within 72 hours of the announcement of results or through his duly appointed agent within 72 hours of announcement of the list of party nominees.
- 28.27 The Appellant will on appeal pay a non-refundable fee of Kshs, 5,000/= to the Party for elective offices within the Branch and Sub- Branch and pay a non-refundable fee of Kshs 10,000/= to the Party for County and National Cases or such other fee as the party NEC may determine.
- 28.28 The appeals to the Disciplinary and Election Appeals Tribunal shall be in writing duly signed by the Appellant and be lodged within three (3) days of announcement of the results appealed from.
- 28.29 Any person who considers that her/his name has been wrongly or unfairly omitted from list of nominees or the party list, shall have the right to appeal to the Panel as set herein within 72 hours after the expiry of the inspection period, provided that this deadline may be extended in exceptional circumstances, which shall be specifically documented.
- 28.30 Parties have a right to represent themselves or be represented by legal representatives of their choice before the Disciplinary and Election Appeals Tribunal.
- 28.31 The Disciplinary and Election Appeals Tribunal may, on its own volition and or upon applications to it, consider the matters filed and render its decision thereon
- 28.32 The hearing may be physical or virtual as the parties may elect and as the circumstances of the case may dictate.
- 28.33 Parties may be heard orally in person or the hearing can be a document only hearing.
- 28.34 The Election Board will put in place measures to ensure that parties are heard and that no right to be heard is defeated by reason of distance. Provision may be made for County and Branch hearings as may be appropriate upon such a request being made to the Board.
- 28.35 Parties should have evidence to support his/her allegations such as:
- a) Witnesses,
 - b) Persons arrested in regard to the office,
 - c) Vote counting irregularities e.g. duplications, irregularities, etc,
 - d) Complaints made at the nominations/polling stations to any party agent, county, branch, Nominations and Elections Board or party official county/ application serial
 - e) Photographic/video evidence
- 28.36 The Disciplinary and Election Appeals Tribunal shall, in suitable cases, have powers to Summon the Returning Officer responsible, witnesses or persons with relevant evidence and thereafter dismiss the appeal or grant orders sought including orders for re-count, re-tallying of votes or repeat of the nomination or election exercise.

- 28.37 The Panel shall determine complaints and appeals within fourteen (14) days of receiving the same and which in any case shall not be more than sixty (60) days of the date of the dispute. However, given the nature of the complaint, the requisite panel shall hear and determine the appeal within 72 hours of receipt of the appeal.
- 28.38 Where a dispute has been filed at the Panel (Convened to deal specifically with Elections cases), the Elections Board shall withhold the certificate of return until such time as they are furnished with the verdict of the panel.
- 28.39 The Chairman shall be at liberty to decide on all the enquiries, the procedural matters, whether to refer them to other alternative resolution mechanism.
- 28.40 The DEAT shall accord a fair hearing to all parties appearing before it and give parties equal opportunity to present their cases and or otherwise defend themselves. However, a party that is dissatisfied with the decision of the panel has a right to Appeal to the Political Parties Tribunal.
- 28.41 The DEAT will be independent, neutral and impartial in the determination of its cases and in the execution of its mandate.
- 28.42 Members of the Board must declare conflict of interest relating to matters that they are dealing with. The Secretary to the Board will maintain a conflict of interest register for that purpose. Any matter in which a member is conflicted will be heard in the members absent.
- 28.43 Members of the DEAT shall abide by this Constitution, the Code of Conduct and the party rules and regulations.
- 28.44 The Disciplinary and Election Appeals Tribunal shall consider and determine matters filed in accordance with the Constitution of Kenya, any applicable Law, party Constitution and Election and Nomination Rules within Ten (10) days of receipt of the complaints.
- 28.45 The decisions of the Panel will be filed at the Political Parties Disputes Tribunal.
- 28.46 DEAT shall consult with the Secretary General, Party Leader and Director of Elections in their service delivery.

ARTICLE 29

Sources of Party Funds

- 29.1 To ensure the broadening and sustainability of the party's revenue base, the National Executive Committee shall establish rules governing the collection, management and expenditure of funds. There shall be established and maintained for the party a fund into which all party finances shall be kept.
- 29.2 The source of funds for the Party shall include the following:
- a) **Subscription** - members shall pay an annual minimum membership subscription fee of such standard rate or rates as may from time to time be determined by the National Executive Council and all rates so determined shall be approved by National Governing Board and shall run for a period based on a membership year system;
 - b) **Contributions** - contributions from Party Members of Parliament, Governors, Members of County Assemblies as may be determined by NEC from time to time;
 - c) **Political Parties Funds** - Such funds as appropriated by Parliament for the Political Parties' Fund;
 - d) **Fundraising, Bequests, and Grants** – Fundraising from any other lawful source not being a foreign government, inter-governmental or non-governmental organization;
 - e) **Subventions and Donations Accepted by NEC** - Numerous individuals and friends of the party that enjoy patronage of the party at all levels shall be encouraged to make donations to the party which should be consistent with any laws;
 - f) **Sale of Nomination Forms (Nomination fees)** - Money generated from the sale of nomination forms shall form part of the party finances;
 - g) **National Chairman's Fund-Raising Dinner** - Participants (i.e. friends of the party and party members) will pay for the dinner according the seating arrangements among other criteria, to be worked out by the committee;
 - h) **Proceeds from any Investments project** - The party shall invest in long term ventures or undertakings in which the party has interest;
 - i) **Business Ventures** – The party shall establish viable business ventures that do not violate any sections of the Constitution of the Kenya 2010 and such other moneys received by the party as may be authorized by law;
 - j) **Borrowing** - While the party should be given the leverage to raise money through borrowing, it shall be only when it is absolutely necessary that borrowing be undertaken. The National Executive Council shall have the power to borrow money on behalf of the Party;
 - k) **Publications** - Net income from publications and consultancies;
 - l) **Others Sources** - fines and penalties as may be prescribed NEC from time to time.

Usage of Party Funds

- 29.3 The party funds shall be used for purposes compatible with the objects and ideals of the party:
- a) Administrative and staff expenses of the political party which shall not be more than thirty per cent of the moneys allocated to the political party;
 - b) To run various party initiatives, activities, programmes, campaigns, nominations and elections, membership recruitment, meetings and conventions, publications and publicity, capacity building,

administration of its offices, and running of the party organs, and will not be used for distribution among members;

- c) Covering the election expenses of the political party and the broadcasting of the policies of the political party;
- d) Organization by the political party of civic education in democracy and other electoral processes;
- e) Bringing the political party's influence to bear on the shaping of public opinion; and
- f) Party funds shall not be used for any other purposes other than those specified in this Constitution. The funds shall only be used for the enhancement of the party's activities;
- g) Promoting the representation in Parliament and in county assemblies of women, persons with disabilities, youth, ethnic and other minorities and marginalized communities;
- h) Party funds shall not be used:
 - i. For paying directly or indirectly remuneration, fees, rewards, allowances or any other benefit to a member or supporter of the political party, other than a member of staff;
 - ii. To finance or as a contribution to any matter, cause, event or occasion directly or indirectly in contravention of any code of ethics binding on public officers;
 - iii. Directly or indirectly for the purposes of establishing any business or acquiring or maintaining any right or financial interest whatsoever in any business or in any immovable property; or
 - iv. For any other purpose incompatible with the promotion of a multiparty democracy and the electoral processes, or with the Constitution.

Fiduciary Duty

29.4 The three core fiduciary duties of party funds managers are the duty of care, the duty of loyalty and the duty of obedience. These duties form the foundation of good governance and guide members in making decisions that are in the best interests of the party.

29.5 The fiduciary duties shall include:

- a) To ensure accountability and transparency in the management of party finances and its procurement processes;
- b) The National Executive Council shall design and develop Standard Financial Rules and Regulations of the party that must govern the collection, management and expenditure of all party funds;
- c) The National Executive Council shall have full control over all monies, funds, property, investments and securities of whatever kind and description belonging to the Party;
- d) All withdrawals shall be against expenditures in the approved budgets or by resolutions of the National Executive Council.
- e) The Finance and Resource Mobilization Committee must include the Treasurer, National Oversight and Auditor in the actual management of party finances;
- f) A Financial Scheme shall set out on how the Party will regulate its financial affairs for the purpose of compliance with current financial legislation by all bodies mentioned in this Constitution;
- g) The Secretary General may deny any body (member or branch) mentioned in the Constitution, that has an outstanding payment to the Party, the entitlement to send or attend as delegates to National Delegates Convention until the debt is cleared;
- h) If a body within the Party goes out of existence or is dissolved, all assets, shall become property of the Party.
- i) Any use of these funds shall be approved by the party's National Executive Committee.

- j) Any decision to distribute party funds shall be illegal irrespective of the NEC decision.
- k) The designated National officials and staff shall ensure that requirements as provided by law on public funds are strictly adhered to.

Official Year

29.6 The official year of the Party shall commence on the 1st day of January in each year. Annual subscriptions shall fall due and be payable on or before the 5th day of January or as otherwise provided for in this constitution in the case of defaults or payments falling in arrears.

Official Signatories to Party Documents

29.7 The authorized officials to sign various party documents shall be as follows:

- a) The Secretary General shall sign documents to the Electoral Commission (IEBC) or Registrar of Political Parties (ORPP) as approved by the relevant party organs and in concurrence with the Party Leader;
- b) The authorized signatories to the bank account and other financial transactions of the party as determined by the NEC with the concurrence of the Party Leader, shall be the following officers;
 - i. The National Chairman;
 - ii. The Secretary General;
 - iii. The National Treasurer.

Provided that withdrawals from or debit instructions on the account are valid only if authorized by the National Chairman and any of the other two signatories, that is, the Secretary General or Treasurer of the party in consultation with the party Leader. Any other related transaction documents shall be signed by two officials who could be either the National Treasurer, Secretary General or National chairman.

- c) The auditor and secretary general shall sign the audited annual accounts;
- d) The Executive Director, National Treasurer and Secretary General shall sign the financial statements and financial reports;
- e) The Secretary General shall under the party leader's concurrence sign reports or documents approved by the NDC, the NGB, the NEC and the Supreme Advisory Committee or any other organ of the party as the case may require;
- f) The Chairperson of the Elections Board, the Chairperson of the Party or the Secretary General or/ Party Leader shall sign nomination papers and certificates; Provided that if authorized by the National Chairman and any of the other two signatories, that is, the Chair of Election Board and Secretary General in consultation with the party Leader.
- g) The decision to form affiliations, alliances, merger or coalition or to dissolve the party or to amend the constitution shall be execute on behalf of the Party by the National Chairperson and the Secretary General and witnessed by the Party Leader;
- h) The party leader shall sign life membership certificates; and
- i) The National Chairperson and Secretary General with the concurrence of the Party Leader shall sign legal documents of the party.

ARTICLE 30

Alliances

30.1 The following process shall be applied when considering collaborations in the form of affiliations and alliances with other political parties:

- a) The Party may enter a pre-election or post-election cooperation agreements, coalitions, collaborations, partnerships or alliance with one or more like-minded political parties for the purpose of winning national elections and forming a government or addressing Parliamentary strength of the Party in Parliament or in a County Assembly and sharing of executive power and other government appointed positions;
- b) The Party may also prior to elections cooperate and form alliances and with like-minded political organizations situated abroad;
- c) The National Executive Council may propose or receive written proposals which shall contain a clear statement of the reasons from any member or group of members of the Party, to form affiliations, alliances, merger or coalition with other political party. A meeting of the Supreme Advisory Committee shall be convened within twenty-one (21) days to consider the merits and demerits of the proposed formation or arrangement;
- d) Notice of the proposed pre-election or post-election arrangements should be given at least fourteen (14) days before the scheduled meeting of the National Executive Council and shall be given to the Secretary General, at least three months before the date of the National Delegates Convention;
- e) The Secretary General upon receipt of the notice shall cause it to be circulated to the Counties and the Branches of the party for publication at least one month before the date of the National Delegates Convention.
- f) The proposals for the pre-election or post-election coalitions, alliances, cooperation agreements, partnerships or mergers shall then be presented for consideration NDC. The resolution for a dissolution should be approved by two-thirds of the total members of the delegates eligible to attend an Ordinary Session of the National Delegates Convention or a Special National Delegates Convention convened for the purpose of ratification of the proposed arrangements.
- g) The decision to form affiliations, alliances, merger or coalition shall be in writing and the instruments involved in any of the arrangements shall be execute for and on behalf of the Party by the National Chairperson and the Secretary General and witnessed by the Party Leader before sealing by the Party Seal and deposited with the Registrar of Political Parties by the Secretary General and the Executive Director, within twenty-one (21) days of the signing of the agreement or in accordance with the provisions of the Political Parties Act as the case may apply from time to time;
- h) The Secretary General shall keep custody of the agreement and the instruments of the merger and coalition;
- i) The CMC will ensure continuous monitoring and evaluation of coalition, cooperation and merger arrangements and advice the NEC and NDC as appropriate.

ARTICLE 31

Coalitions

- 31.1 The following process shall be applied when considering collaborations in the form of coalitions with other political parties:
- a) Where the NEC or NDC rejects the proposal, such an arrangement shall be deemed to have failed. Upon a resolution to form affiliations, alliances, merger or coalition with other political party, the National Executive Council shall appoint a Coalition Management Committee (CMC) to serve as the Party's negotiation team for the purposes settling the terms of a coalition agreement;
 - b) The Coalition Management Committee (CMC) shall consist of at least five but not more than ten members provided that one third of the members shall be of the other gender, and shall comprise of the Party Leader and Deputy, Presidential Candidate (if not the same as party leader) and Deputy, National Chairperson and Deputy, the Secretary General, and three (3) other persons nominated by the NEC one of whom shall be appointed the Secretary for the CMC. The Party Leader chairs meetings of the CMC;
 - c) The Coalition Management Committee (CMC) shall develop a strategy to be approved by the National Executive Council in preparation for a possible coalition arrangement at least six months before or within 60 days after the general election. The National Executive Council in consultation with the Supreme Advisory Committee may vary, amend, vitiate and/or terminate a coalition agreement so as to align with provisions of this constitution.

ARTICLE 32

Merger

- 32.1 The following process shall be applied when considering collaborations in the form of mergers with other political parties:
- a) Where merger has taken place, members of the SFUP shall be deemed to be a member of the new political party. A member of the party who is a President, Deputy President, Governor or Deputy Governor, Member of Parliament or member of a County Assembly or Office Bearers, shall retain their membership, elected or appointed party positions where after the affiliation, alliance, merger or coalition, the individual parties retain their distinct party identities;
 - b) In the case of a merger where a new entity is formed, any of the mentioned members and their positions, who do not desire to be a member of the new entity, shall continue to serve in such elected office for the remainder of the term or as may be prescribed by applicable legal provisions or may opt to join another political party or be an independent within thirty days if the case permits;
 - c) In the case of a merger, the party particulars including names, symbol, logo, slogan and colours shall be removed from the register of political parties and such party particulars shall not be available for registration by any person as a political party or use in subsequent elections following the merger unless it is agreed by the merging parties that the new political party shall register and use SFUP names, symbols, logos, slogans and colours;
 - d) Where a resolution is passed for the merger of the Party, all properties and funds of the Party less liabilities shall be absorbed by the new entity as shall be determined by the Special National Delegates Convention at which the resolution in favour of the merger is passed. Voting in motion for the affiliations, alliances, merger and coalition shall be by Secret Ballot only;

- e) The records, assets and liabilities, rights and obligations of all the merged parties shall be the records, assets and liabilities, rights and obligations of the new political party including the entitlement to the Political Parties Fund under section 25 of the Act;

ARTICLE 33

Dissolution of the Party

33.1 The following process shall be applied when considering dissolution:

- a) The National Executive Council may, after consultation with the Branch Executive Committee and on stating reasons, dissolve any Branch and make interim provision for performance of the responsibilities of the Branch Association until a new one can be created;
- b) Should a Branch wish to disband or go into recess, the books and assets of the defunct Branch shall be forwarded by the Secretary to or recovered by the Secretary General or any person authorized by the Secretary General;
- c) The National Executive Council may propose or receive written proposals which shall contain a clear statement of the reasons from any member or group of members of the Party, to dissolve the party. A meeting of the Supreme Advisory Committee shall be convened within twenty-one (21) days to consider the merits and demerits of such proposals;
- d) Notice of the proposed pre-election or post-election arrangements should be given at least fourteen (14) days before the scheduled meeting of the National Executive Council and shall be given to the Secretary General, at least three months before the date of the National Delegates Convention;
- e) The Secretary General upon receipt of the notice shall cause it to be circulated to the Counties and the Branches of the party for publication at least one month before the date of the National Delegates Convention.
- f) The proposals for dissolution shall then be presented for consideration NDC. The resolution for a dissolution should be approved by two-thirds of the total members of the delegates eligible to attend an Ordinary Session of the National Delegates Convention or a Special National Delegates Convention;
- g) Where the NEC or NDC rejects the proposal, such dissolution shall be deemed to have failed. Upon approval to dissolve the party, the National Executive Council shall appoint a Dissolution Committee (DC) to serve as the Party's team to facilitate the process;
- h) The Dissolution Committee (DC) shall consist of at least five but not more than ten members provided that one third of the members shall be of the other gender, and shall comprise of the Party Leader and Deputy, Presidential Candidate (if not the same as party leader) and Deputy, National Chairperson and Deputy, the Secretary General, and three (3) other persons nominated by the NEC one of whom shall be appointed the Secretary for the DC. The Party Leader chairs the DC meetings;
- i) The dissolution process should take at least six months. The National Executive Council in consultation with the Supreme Advisory Committee may vary, amend, vitiate and/or otherwise vacate from dissolving the party if there are valid reason that stops the process from continuing;
- j) Where dissolution has taken place, members of the party forthwith cease to be members. A member of the party who is a President, Deputy President, Governor or Deputy Governor, Member of Parliament or member of a County Assembly or office bearers, shall continue to serve in such elected office for the remainder of the term or as may be prescribed by applicable legal provisions or may

join another political party if the case permits or choose to be an independent within thirty days of the dissolution of the party and without losing their seats;

- k) In the case of a dissolution, the party particulars including names, symbol, logo, slogan and colours shall be removed from the register of political parties and such party particulars shall not be available for registration by any person as a political party or use in subsequent elections following the dissolution;
- l) Where a resolution is passed for the dissolution of the Party, all properties and funds of the Party less liabilities shall be distributed in a manner as shall be determined by the Special National Delegates Convention at which the resolution in favour of the dissolution is passed. Voting in motion for the dissolution shall be by Secret Ballot only;
- m) The decision to dissolve the party shall be in writing and the instruments involved in any of the arrangements shall be executed for and on behalf of the Party by the National Chairperson and the Secretary General and witnessed by the Party Leader before sealing by the Party Seal and deposited with the Registrar of Political Parties by the Secretary General and the Executive Director after which the Dissolution Committee also ceases to exist.

DECLARATION

We hereby declare that this Constitution of the **Shikana Frontliners for Unity Party (SFUP)** ratified by the National Delegates Convention of the Party held in Nairobi on the..... day of..... 2024.

PUBLISHED FOR SFUP MEMBERS BY:

Shikana Frontliners For Unity Party,

P.O. Box 18234-00100 NAIROBI,

Email: shikana@gmail.co.ke

Website: www.shikana.co.ke
